

بِسْمِ اللَّهِ الرَّحْمَنِ الرَّحِيمِ

Topic IX — The Islamic Code of Life — Sources of Law and the Islamic Systems

The Question Answers · Every past-paper question of Topic 9, 2015–2026, answered as a model

Eight model answers — the importance of the Sunnah, Ijma and its kinds (twice, the second with parliament), Ijtihad and its contemporary importance and principles, the Islamic economic system as the solution, the principles of Islamic economics, and the concentration of wealth. Each begins with an answer map that states exactly what the question asks.

Contents

HOW TO BUILD THE CONTENTS

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How to Use These Answers

What is in this document

#	Paper	Question (short)	Answer
1	2015 Q6	The importance of the Sunnah in interpretation and legislation	Answer 1
2	2017 Q8	Ijma: definition, kinds, importance in the Quran and Sunnah	Answer 2
3	2018 Q2	Ijtihad: definition and contemporary importance	Answer 3
4	2020 Q8	'The Islamic financial and economic system is the solution of human financial problems'	Answer 4
5	2022 Q3	Principles of Islamic economics and their solutions to contemporary challenges	Answer 5
6	2022 Q4	Ijtihad: concept, importance and principles	Answer 6
7	2023 Q5	Ijma and its kinds; can a parliament's legislation be a valid consensus?	Answer 7
8	2025 Q5	Disadvantages of concentration of wealth; Islam's preventive measures	Answer 8

Repeated families get **different shapes**:

- **Ijma (2017, 2023)**: 2017 builds on the **evidence**; 2023 spends half its space on **parliament**.
- **Ijtihad (2018, 2022)**: 2018 builds on **contemporary importance**; 2022 on **principles**.
- **Economics (2020, 2022)**: 2020 argues a **thesis** ('the solution'); 2022 lists **principles**, then matches them to challenges.

How every answer is built

1. **The question**, exactly as set.
2. **The answer map** — the centre states **exactly what the question asks**; every box is a heading, and every point is a complete idea.
3. **Decoding the question**.
4. **The model answer** — headings from the question's words; evidence **Quran → Hadith → Companions and jurists → law and data**; figures; Pakistan; a conclusion with a verse or hadith.
5. **Why this answer scores**.

TRAP · DEFINITION, EVIDENCE, EXAMPLE

In every Usul answer, give the **literal and technical definition**, the **Quranic and Prophetic evidence**, and **one example for every kind**. The examiner marks precision.

Answer 1 · The Importance of the Sunnah in Interpretation and Legislation (CSS 2015)

THE QUESTION · CSS 2015 · Q6 · 16 marks

Write a comprehensive note on the importance of Sunnah in interpretation and legislation.

Meaning and authority first; then five roles in interpreting the Quran; then independent legislation; then preservation and Pakistan.

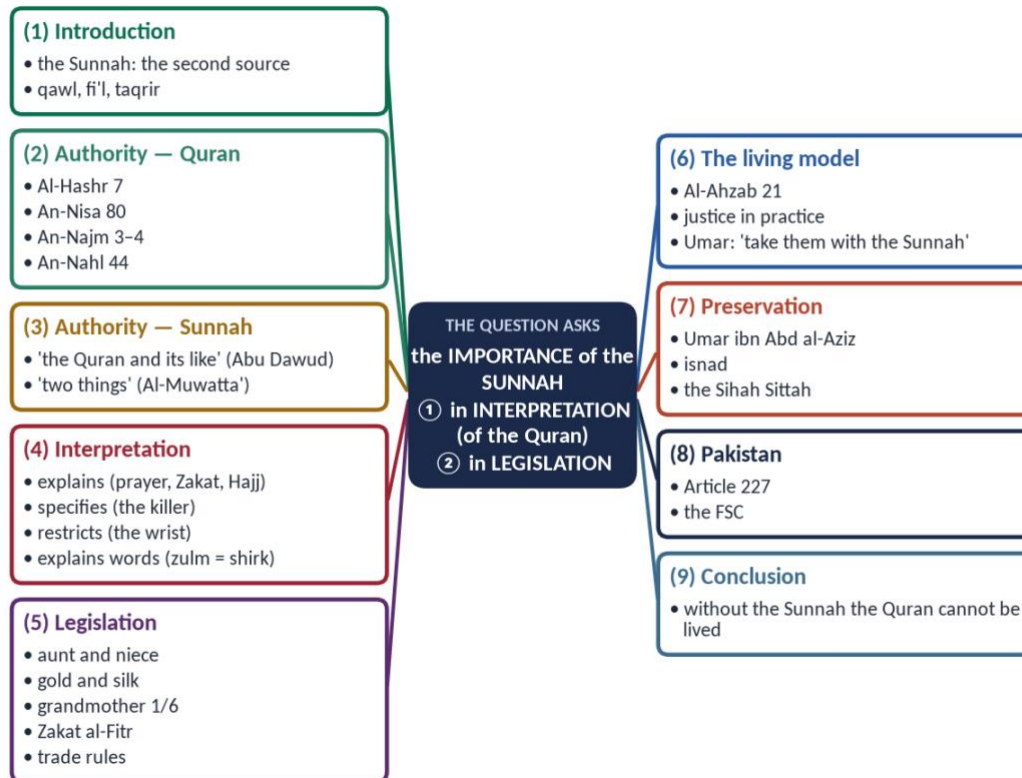


Figure 1 · The answer map: every branch is one numbered heading of the model answer below.

Decoding the question

- '**Comprehensive note**' — full coverage: meaning, authority, the two roles, preservation.
- '**In interpretation**' — how the Sunnah **explains** the Quran.
- '**In legislation**' — how it **makes law**, including rulings not in the Quran.

The model answer

(1) Introduction

The **Sunnah** (سنة) is everything reported from the Prophet ﷺ:

- his **sayings** (qawl);
- his **actions** (fi'l);
- his **tacit approvals** (taqrir).

It is the **second source** of Islamic law after the Quran. The Quran gives the principles; the Sunnah shows how to understand and live them.

(2) The authority of the Sunnah

✦ QURAN

﴿... كَيْ لَا يَكُونَ دُولَةً بَيْنَ الْأَغْنِيَاءِ مِنْكُمْ...﴾

“... so that it does not circulate only among the rich among you.” (Al-Hashr, Quran)

→ 'Whatever the Messenger gives you, take it; and whatever he forbids you, refrain from it.'

✦ QURAN

﴿مَنْ يُطِيعِ الرَّسُولَ فَقَدْ أَطَاعَ اللَّهَ وَمَنْ تَوَلَّى فَمَا أَرْسَلْنَاكَ عَلَيْهِمْ حَفِيظًا﴾

“He who obeys the Messenger has obeyed Allah; but those who turn away - We have not sent you over them as a guardian.” (An-Nisa, Quran)

→ 'Whoever obeys the Messenger has obeyed Allah.'

✦ QURAN

﴿وَمَا يَنْطِقُ عَنِ الْهَوَىٰ ۖ إِنْ هُوَ إِلَّا وَحْيٌ يُوحَىٰ﴾

“Nor does he speak from [his own] inclination. It is not but a revelation revealed.” (An-Najm, Quran)

→ Nor does he speak from his own desire. **It is nothing but revelation revealed.**

✦ HADITH

﴿أَلَا إِنِّي أُوتِيتُ الْقُرْآنَ وَمِثْلَهُ مَعَهُ﴾

“Indeed, I have been given the Quran and something like it along with it.” (Abu Dawud)

(3) The importance of the Sunnah in interpretation

✦ QURAN

﴿بِالْبَيِّنَاتِ وَالزُّبُرِ وَأَنْزَلْنَا إِلَيْكَ الذِّكْرَ لِتُبَيِّنَ لِلنَّاسِ مَا نُزِّلَ إِلَيْهِمْ وَلَعَلَّهُمْ يَتَفَكَّرُونَ﴾

“[We sent them] with clear proofs and written ordinances. And We revealed to you the message that you may make clear to the people what was sent down to them and that they might give thought.” (An-Nahl, Quran)

→ We sent down to you the Reminder **so that you may make clear to people what was sent down to them.**

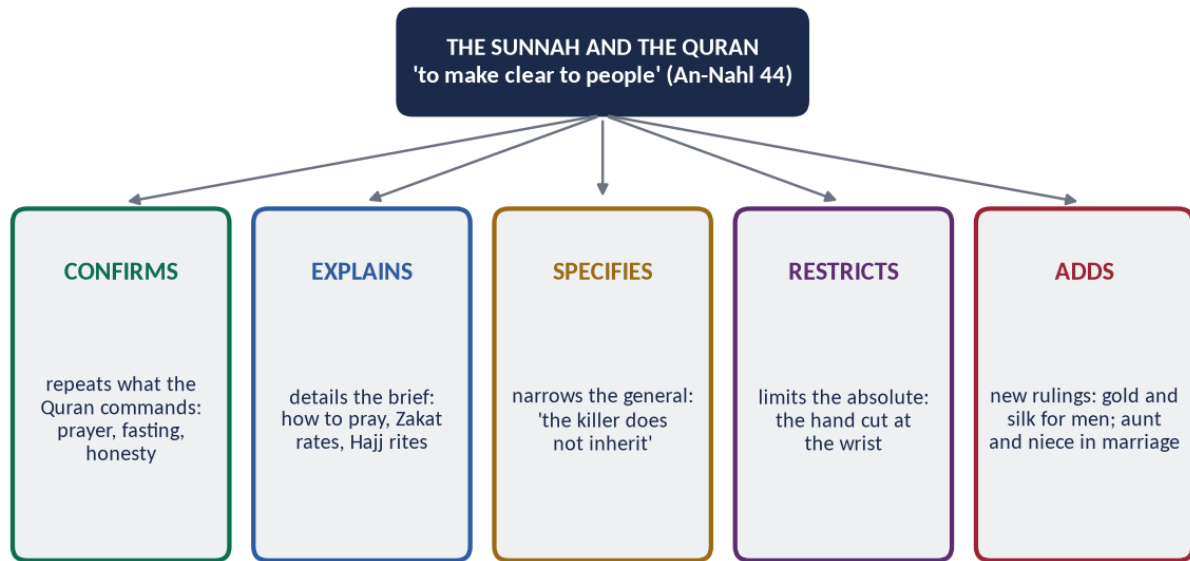


Figure 2 · The five roles of the Sunnah in relation to the Quran.

(i) It explains the brief (bayan al-mujmal)

- The Quran commands prayer. The Sunnah fixes its **times, rak'ahs and method**: 'Pray as you have seen me praying' (Al-Bukhari).
- The Quran commands Zakat. The Sunnah fixes the **nisab and rates**.
- The Quran commands Hajj. The Sunnah shows the **rites**: 'Take your rites from me' (Muslim).

(ii) It specifies the general (takhsis)

The Quran gives children inheritance in general terms (An-Nisa 11). The Sunnah excludes the **killer**: 'The killer does not inherit' (Al-Tirmidhi).

(iii) It restricts the absolute (taqyid)

'Cut off the hand of the thief' (Al-Ma'idah 38) is absolute. The Sunnah fixes the **wrist** and the **minimum value**.

(iv) It explains words and concepts

When Al-An'am 82 ('those who do not mix their faith with **zulm**') troubled the Companions, the Prophet ﷺ explained that **zulm here means shirk**, citing Luqman 13 (Al-Bukhari). 'The middle prayer' (Al-Baqarah 238) is '**Asr**' (Al-Bukhari and Muslim).

(v) It confirms

It repeats and strengthens the Quran's commands — honesty, kindness to parents, the sanctity of life.

(4) The importance of the Sunnah in legislation

The Sunnah also makes **independent law** (al-sunnah al-mustaqillah) where the Quran is silent. This is part of the authority Allah gave the Prophet ﷺ (Al-Hashr 7).

Ruling from the Sunnah	Source
No marriage to a woman and her paternal or maternal aunt together	Al-Bukhari and Muslim

Ruling from the Sunnah	Source
Gold and silk forbidden for men	Al-Tirmidhi; Al-Nasa'i
The grandmother's share of one-sixth	Abu Dawud (confirmed by Abu Bakr after asking the Companions)
Domestic donkeys' meat and predatory animals forbidden	Al-Bukhari and Muslim
Zakat al-Fitr	Al-Bukhari and Muslim
No sale of gharar or of what one does not own	Muslim; Abu Dawud

Whole chapters of fiqh draw mostly on the Sunnah: the details of **trade, judging, evidence, war and treaties**.

Legislation in whole fields of law

- **Judicial procedure and evidence** come largely from the Sunnah: 'The burden of proof is on the claimant, and the oath on the one who denies' (Al-Tirmidhi); 'Do not judge for the first until you hear the other' (Al-Tirmidhi).
- **International relations** — the treatment of envoys and prisoners and the keeping of treaties — rest on the Prophet's ﷺ practice at Badr, Hudaibiyyah and the Conquest of Makkah.

(5) The Sunnah as the living model

✦ QURAN

﴿لَقَدْ كَانَ لَكُمْ فِي رَسُولِ اللَّهِ أُسْوَةٌ حَسَنَةٌ لِّمَن كَانَ يَرْجُوا اللَّهَ وَالْيَوْمَ الْآخِرَ وَذَكَرَ اللَّهَ كَثِيرًا﴾

"There has certainly been for you in the Messenger of Allah an excellent pattern for anyone whose hope is in Allah and the Last Day and [who] remembers Allah often." (Al-Ahzab, Quran)

→ 'There has certainly been for you in the Messenger of Allah an excellent example.'

The Sunnah turns commands into **practice**:

- justice in his judgements;
- mercy in his treatment of enemies;
- fairness in his treaties;
- kindness in his home.

Umar (RA) said: 'People will come who argue with you using the ambiguous verses of the Quran. **Take hold of them with the Sunnah**, for the people of the Sunnah know the Book of Allah best' (Al-Darimi).

(6) The preservation of the Sunnah

- Writing in the Prophet's ﷺ time: 'Abdullah ibn 'Amr's *Al-Sahifah al-Sadiqah*.
- Official collection ordered by **Umar ibn Abd al-Aziz** (about 100 AH), through **Ibn Shihab al-Zuhri**.
- The sciences of **isnad** and **rijal**, which sort the **sahih**, **hasan** and **da'if**.
- The great collections: *Al-Muwatta'*, and the **Sihah Sittah** led by **Al-Bukhari** and **Muslim**.

(7) The Sunnah in Pakistan's law

Article 227 of the Constitution requires every law to conform to 'the injunctions of Islam as laid down in the **Holy Quran and Sunnah**'. The **Federal Shariat Court (Article 203)** reviews laws against both.

(8) Why the Quran alone is not enough

Those who deny the Sunnah cannot pray, give Zakat or perform Hajj from the Quran alone. The Quran itself commands obedience to the Messenger. The Prophet ﷺ foresaw this claim and rejected it.

The Sunnah — the names only		
Authority	Interpretation	Legislation and more
qawl, fi'l, taqrir	explains (prayer, Zakat, Hajj)	aunt and niece
Al-Hashr 7	specifies (killer)	gold and silk
An-Nisa 80	restricts (wrist)	grandmother 1/6
An-Najm 3-4	words (zulm = shirk)	donkeys
An-Nahl 44	'Asr)	Zakat al-Fitr
'the Quran and its like'	confirms	gharar
		living model (Al-Ahzab 21)
		preservation
		Article 227

Figure 3 · At a glance — the Sunnah — the names only. The detail is in the sections above.

(9) Conclusion

✦ HADITH

تَرَكْتُ فِيكُمْ أَمْرَيْنِ لَنْ تَضِلُّوا مَا تَمَسَّكْتُم بِهِمَا: كِتَابَ اللَّهِ وَسُنَّةَ نَبِيِّهِ

"I have left among you two things; you will not go astray as long as you hold to them: the Book of Allah and the Sunnah of His Prophet." (Al-Muwatta' (Malik))

The Sunnah is the **key to the Quran** and a **source of law in its own right**. In interpretation it explains, specifies, restricts and confirms. In legislation it adds rulings the Quran left to it. Without the Sunnah, the Quran could be recited but not lived.

Why this answer scores

- **Both limbs** — interpretation and legislation — get full headings, each with **named examples**.
- Authority is proved **from the Quran and from the Sunnah** before the roles are explained.
- Preservation and **Article 227** make it 'comprehensive'.

Answer 2 · Ijma: Definition, Kinds and Importance in the Light of the Quran and Sunnah (CSS 2017)

THE QUESTION · CSS 2017 · Q8 · 20 marks

Define Ijma' (consensus) and explain its different kinds. Highlight its importance in the light of the Qur'ān and Sunnah.

Three limbs in the question's order; the importance is built on verses and hadith, then shown in examples.

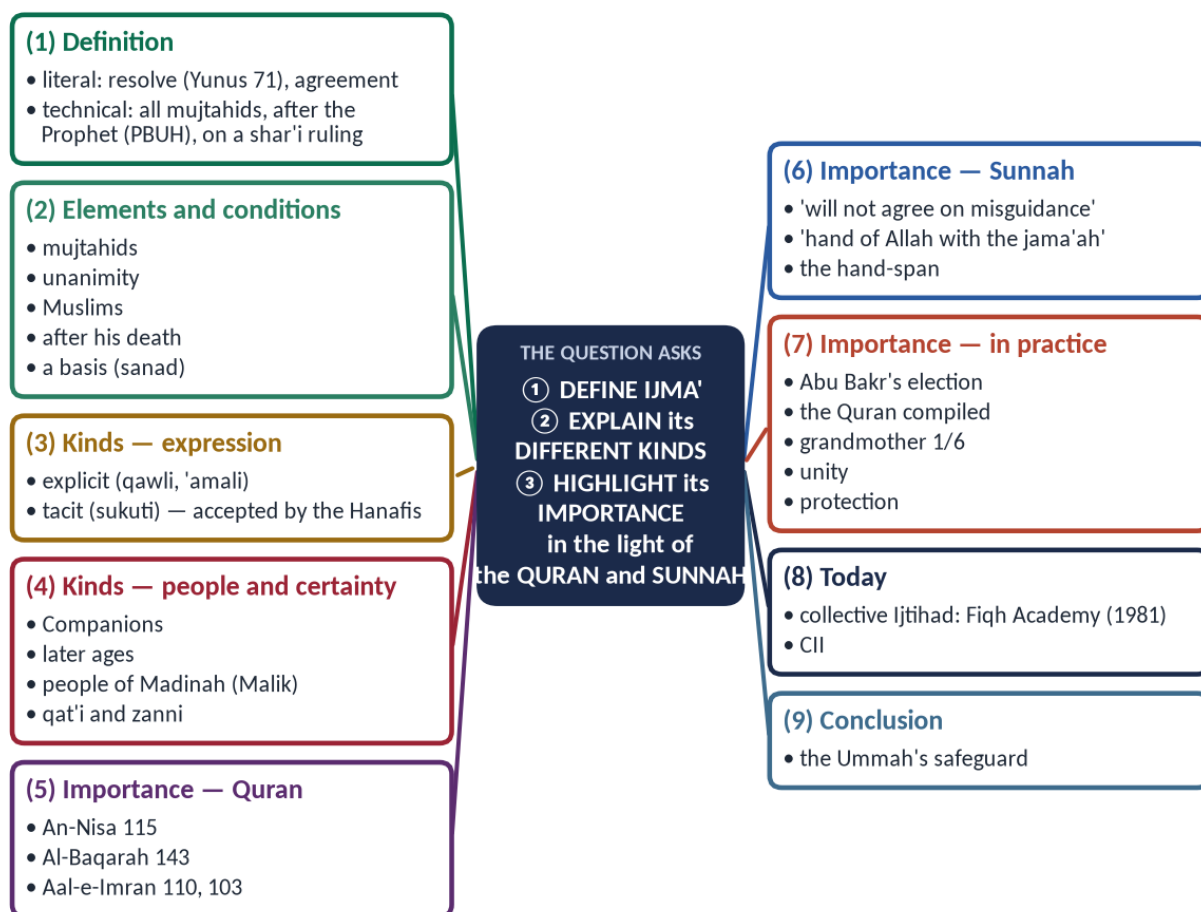


Figure 4 · The answer map: every branch is one numbered heading of the model answer below.

Decoding the question

- **'Define'** — literal and technical definition, with its elements.
- **'Explain its different kinds'** — each kind with a line of explanation and, where possible, an example.
- **'Highlight its importance in the light of the Quran and Sunnah'** — importance **proved by verses and hadith**, not only described.

The model answer

(1) Introduction

After the Quran and Sunnah, **Ijma'** (**consensus**) is the third source of Islamic law. It is the Ummah's collective understanding, the safeguard that keeps the religion from individual error.

(2) Definition of Ijma

(i) Literal meaning

Ijma' (إِجْمَاع) has two meanings:

- **firm resolve** — 'so resolve upon your plan' (فَأَجْمَعُوا أَمْرَكُمْ, Yunus 71);
- **agreement**.

(ii) Technical meaning

Ijma' is **the agreement of all the mujtahids of the Ummah of Muhammad ﷺ, in any age after his death, on a legal ruling.**

(iii) Its elements and conditions

- **Mujtahids** — qualified jurists; the agreement of the general public is not technical *Ijma*.
- **All of them** — one qualified dissent prevents it (the majority view).
- **Muslims** of the Ummah of Muhammad ﷺ.
- **After his death** — in his life, his word was final.
- **A shar'i ruling.**
- **A basis (sanad)** in the Quran, Sunnah or Qiyas.

(3) The different kinds of Ijma

(i) By the way it is expressed

- **Explicit Ijma (sarih)** — every mujtahid states his opinion in **words (qawli)** or shows it in **practice ('amali)**, and all agree. It is the **strongest** and **certain**.
- **Tacit Ijma (sukuti)** — some mujtahids give a view, it becomes widely known, and the others stay **silent** without objection after time to consider. The **Hanafis** accept it as a proof; al-Shafi'i, in his well-known view, did not treat it as certain.

(ii) By the people and the period

- **Ijma of the Companions** — the strongest in practice, accepted by all schools. **Example:** the Caliphate of Abu Bakr (RA).
- **Ijma of the mujtahids of a later age** — accepted by the majority.
- **Ijma of the people of Madinah** — Imam **Malik** treated their practice as authoritative, since they inherited the Prophet's ﷺ living Sunnah; other schools did not.

(iii) By its certainty

- **Qat'i (certain)** — explicit *Ijma* transmitted by mass transmission.
- **Zanni (probable)** — tacit *Ijma*, or *Ijma* reported by few narrators.

(4) The importance of Ijma in the light of the Quran

✦ QURAN

﴿وَمَنْ يُشَاقِقِ الرَّسُولَ مِنْ بَعْدِ مَا تَبَيَّنَ لَهُ الْهُدَىٰ وَيَتَّبِعْ غَيْرَ سَبِيلِ الْمُؤْمِنِينَ نُوَلِّهِ مَا تَوَلَّىٰ وَنُصْلِهِ جَهَنَّمَ ۖ وَسَاءَتْ مَصِيرًا﴾

"And whoever opposes the Messenger after guidance has become clear to him and follows other than the way of the believers - We will give him what he has taken and drive him into Hell, and evil it is as a destination."

(An-Nisa, Quran)

→ Whoever opposes the Messenger after guidance has become clear to him, **and follows other than the way of the believers**, We will give him what he has taken and drive him into Hell.

✦ QURAN

﴿وَكَذَٰلِكَ جَعَلْنٰكُمْ أُمَّةً وَسَطًا لِتَكُونُوا شُهَدَاءَ عَلَى النَّاسِ وَيَكُونَ الرَّسُولُ عَلَيْكُمْ شَهِيدًا...﴾

"And thus We have made you a middle (just) nation, that you may be witnesses over mankind and the Messenger a witness over you." **(Al-Baqarah, Quran)**

→ 'We have made you a middle (just) nation, that you may be witnesses over mankind.'

✦ QURAN

﴿كُنْتُمْ خَيْرَ أُمَّةٍ أُخْرِجَتْ لِلنَّاسِ تَأْمُرُونَ بِالْمَعْرُوفِ وَتَنْهَوْنَ عَنِ الْمُنْكَرِ وَتُؤْمِنُونَ بِاللَّهِ...﴾

"You are the best nation brought forth for mankind: you enjoin what is right, forbid what is wrong, and believe in Allah." **(Aal-e-Imran, Quran)**

→ 'You are the best nation raised for mankind: you enjoin right and forbid wrong.'

✦ QURAN

﴿وَاَعْتَصِمُوا بِحَبْلِ اللَّهِ جَمِيعًا وَلَا تَفَرَّقُوا وَاذْكُرُوا نِعْمَتَ اللَّهِ عَلَيْكُمْ إِذْ كُنْتُمْ أَعْدَاءً فَأَلَّفَ بَيْنَ قُلُوبِكُمْ فَأَصْبَحْتُمْ بِنِعْمَتِهِ إِخْوَانًا...﴾

"And hold firmly to the rope of Allah all together and do not become divided. Remember Allah's favour upon you: you were enemies, and He brought your hearts together, and by His favour you became brothers." **(Aal-e-Imran, Quran)**

→ 'Hold fast to the rope of Allah all together and do not be divided.'

(5) The importance of Ijma in the light of the Sunnah

✦ HADITH

إِنَّ أُمَّتِي لَا تَجْتَمِعُ عَلَى ضَلَالَةٍ

"My Ummah will not agree upon misguidance." **(Ibn Majah)**

✦ HADITH

إِنَّ اللَّهَ لَا يَجْمَعُ أُمَّتِي عَلَى ضَلَالَةٍ، وَيَدُ اللَّهِ مَعَ الْجَمَاعَةِ

"Allah will not gather my Ummah upon misguidance, and the hand of Allah is with the jama'ah." (Al-Tirmidhi)

✦ HADITH

مَنْ فَارَقَ الْجَمَاعَةَ شِبْرًا فَمَاتَ، فَمَيِّتَةٌ جَاهِلِيَّةٌ

"Whoever separates from the community by a hand-span and dies, dies a death of Jahiliyyah." (Al-Bukhari and Muslim)

These reports, through many chains, together give **certainty** that the Ummah as a whole is protected from agreeing on error.

(6) The importance of Ijma in practice

(i) It preserved the religion itself

The **compilation of the Quran** under Abu Bakr (12 AH) and Uthman's **standard copy** rest on the Companions' consensus.

(ii) It settled the state

The Companions agreed on the **Caliphate of Abu Bakr** and on **fighting those who refused Zakat**.

(iii) It fixed rulings

- The **grandmother's share of one-sixth**, after al-Mughirah and Muhammad ibn Maslamah reported the Prophet's ﷺ ruling.
- The prohibition of marrying a **grandmother**, extended from 'your mothers' (An-Nisa 23).

(iv) It secures unity and stability

Settled questions are not reopened every generation, so the Ummah shares a common core across all schools.

(v) It protects against individual error

No single scholar or ruler can impose a view against the consensus of the qualified.

(vi) It answers new questions

In modern form, as **collective Ijtihad**, through the **International Islamic Fiqh Academy** of the OIC (1981) and Pakistan's **Council of Islamic Ideology**.

(vii) It sets the limits of difference

Where there is Ijma, no one may break it; where there is none, the jurists may **differ**, and their reasoned differences are respected. This is why the four schools, differing in hundreds of details, remain **one Ummah** agreed on the fundamentals.

Ijma — the names only		
Definition	Kinds	Importance
resolve (Yunus 71)	explicit (qawli, 'amali)	An-Nisa 115
agreement	tacit (Hanafi)	Al-Baqarah 143
all mujtahids	Companions	Aal-e-Imran 110, 103
the Ummah	later ages	'no agreement on misguidance'
after the Prophet (PBUH)	Madinah (Malik)	'hand of Allah'
shar'i ruling	qat'i	the Quran compiled
sanad	zanni	Abu Bakr
		grandmother 1/6
		unity
		collective Ijtihad

Figure 5 · At a glance — ijma — the names only. The detail is in the sections above.

(7) Conclusion

Ijma is the Ummah's **collective conscience**. It is grounded in the Quran's praise of 'the way of the believers' and the Prophet's ﷺ promise that his Ummah will not agree on misguidance. It preserved the Quran, settled the state and fixed the law. Today, through collective Ijtihad, it can guide the Ummah on questions the early jurists never faced.

Why this answer scores

- **Three limbs** answered in the question's order.
- Every kind is **defined and exemplified**; the school views (Hanafi, Maliki, Shafi'i) show depth.
- Importance is **proved from four verses and three hadith**, then shown in **practice**.

Answer 3 · Ijtihad and Its Contemporary Importance in the Light of Islamic Fiqh (CSS 2018)

THE QUESTION · CSS 2018 · Q2 · 20 marks

Define Ijtihad, also highlight its contemporary importance in the light of Islamic Fiqh.

A precise definition with its basis and conditions; then the contemporary importance, field by field, with Fiqh Academy rulings.

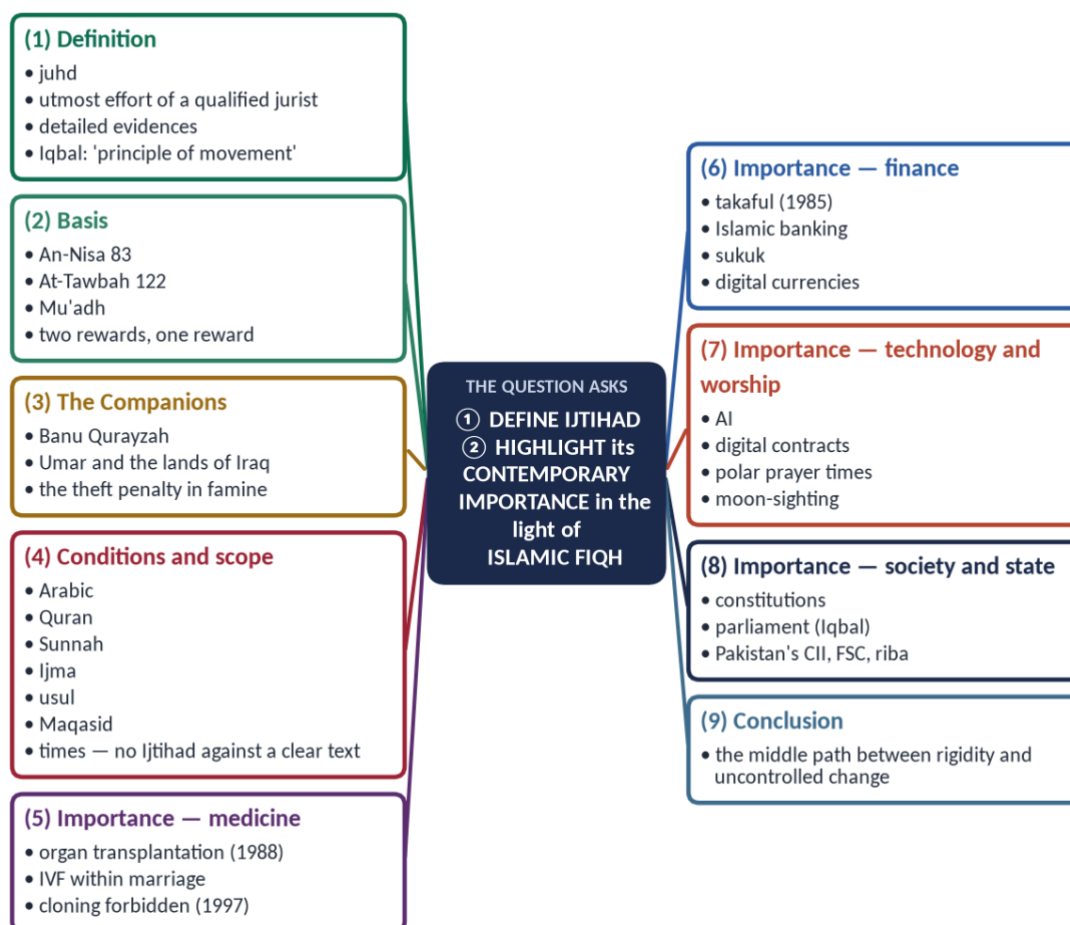


Figure 6 · The answer map: every branch is one numbered heading of the model answer below.

Decoding the question

- **'Define Ijtihad'** — the literal and technical definition, with its basis and conditions. This is the shorter limb.
- **'Contemporary importance in the light of Islamic Fiqh'** — why Ijtihad is **needed today**, shown through **modern fiqh rulings**. This is the main limb.

The model answer

(1) Introduction

Islam's texts are fixed, but life keeps changing. **Ijtihad** is the method by which the fixed principles of the Shari'ah meet new questions.

✦ SCHOLARLY VIEW

Allama Muhammad Iqbal · The Reconstruction of Religious Thought in Islam, Lecture VI

"The principle of movement in the structure of Islam."

→ Iqbal's definition of **Ijtihad**.

(2) Definition of Ijtihad

(i) Literal meaning

Ijtihad (اجْتِهَاد) comes from **juhd** (جُهْد), effort. It means exerting oneself to the utmost in a **difficult** task.

(ii) Technical meaning

Ijtihad is **the utmost effort of a qualified jurist (mujtahid) to derive a practical legal ruling from its detailed evidences** — the Quran, the Sunnah, Ijma and Qiyas.

(iii) Its basis

✦ QURAN

﴿... وَلَوْ رَدُّوهُ إِلَى الرَّسُولِ وَإِلَى أُولِي الْأَمْرِ مِنْهُمْ لَعَلِمَهُ الَّذِينَ يَسْتَنْبِطُونَهُ مِنْهُمْ...﴾

"If they had referred it to the Messenger and to those in authority among them, those who can draw conclusions from it would have known it." (An-Nisa, Quran)

→ If they had referred it to the Messenger and to those in authority among them, **those who can draw conclusions from it** would have known it.

✦ HADITH

إِذَا حَكَمَ الْحَاكِمُ فَاجْتَهَدَ ثُمَّ أَصَابَ فَلَهُ أَجْرَانِ، وَإِذَا حَكَمَ فَاجْتَهَدَ ثُمَّ أَخْطَأَ فَلَهُ أَجْرٌ

"When a judge rules, having striven, and is right, he has two rewards; if he strives and errs, he has one reward." (Al-Bukhari and Muslim)

Mu'adh ibn Jabal (RA), sent to Yemen, said he would judge by the Quran, then the Sunnah, then **'I will use my own judgement and spare no effort'** — and the Prophet ﷺ approved (Abu Dawud; Al-Tirmidhi).

(iv) The Companions practised it

- At **Banu Qurayzah**, the Prophet ﷺ approved two different readings of one command.
- **Umar (RA)** kept the lands of Iraq as state land for future generations, and suspended the penalty for theft in the famine of 18 AH.

(v) Its conditions and scope

- **Conditions:** mastery of Arabic, the Quran (especially its roughly 500 legal verses), the Sunnah, Ijma, usul al-fiqh and the **Maqasid**, and knowledge of the times; the mujtahid must be upright.
- **Scope:** 'No Ijtihad where there is a clear text.' Ijtihad works where the text is **probable in meaning** or where there is **no text**.

(3) The contemporary importance of Ijtihad in the light of Islamic Fiqh

(i) Medicine and bioethics

The classical books never discussed transplants or test-tube babies. Modern collective Ijtihad has:

- **allowed organ transplantation** with conditions — consent, no sale, no harm to the donor (International Islamic Fiqh Academy, **1988**);
- allowed **IVF within marriage**, using the couple's own cells;
- **forbidden human reproductive cloning (1997)** and surrogacy that mixes lineage;
- examined **brain death** and life support.

The principles used are the protection of **life** and **lineage** (Maqasid), and 'necessity' with its limits.

(ii) Finance and economics

- **Takaful** (cooperative insurance) was approved in place of commercial insurance (Fiqh Academy, **1985**).
- **Islamic banking** products — murabahah, ijarah, musharakah, diminishing musharakah for house finance.
- **Sukuk** in place of interest-bearing bonds.
- **Stock markets** — screening of permissible shares.
- **Digital currencies** — debated through the rules of gharar and the nature of money.

Without Ijtihad, Muslims would face a choice between **riba** and **exclusion** from modern economic life.

(iii) Technology

- **Artificial intelligence** — responsibility for harm, honesty of generated content.
- **Online contracts** — does clicking 'accept' create a valid offer and acceptance?
- **Cybercrime** and **data privacy** — judged through 'do not spy' (Al-Hujurat 12) and the protection of honour and wealth.

(iv) Worship in new conditions

- **Prayer and fasting times** in polar regions, where the sun does not set or rise for months — scholars allow following the nearest normal region or Makkah.
- **Moon-sighting** and the role of astronomical calculation.
- **Prayer on aircraft** and trains; the direction of the qiblah in space.

(v) Environment

Climate change, pollution and water shortage are addressed through **man as trustee** (khalifah) and the protection of **life**. 'Do not spread corruption on earth after it has been set right' (Al-A'raf 56).

(vi) State and society

- Constitutions, elections and parliaments as **Shura**.
- **Citizenship** of non-Muslims in a modern state.
- Iqbal's proposal: Ijtihad through an elected **Muslim legislative assembly** guided by scholars (Lecture VI).

(vii) Family and social questions

- The **registration of marriages** and divorces, to protect the rights of women and children.
- **DNA and forensic evidence** in criminal cases.
- **Women's work** in professions and public life, within the Shari'ah's limits.

All of these are answered through **maslahah** and the Maqasid of protecting **lineage** and **justice**.

(viii) Pakistan

The **Council of Islamic Ideology** (Articles 228–231) and the **Federal Shariat Court** (Article 203) are institutional Ijtihad. Their **riba** judgements (1991; 2022) and the growth of Islamic banking are its fruits.

(ix) Unity and balance

Collective Ijtihad brings scholars of all schools together. It also answers two extremes: **rigidity** that refuses all new questions, and **unqualified 'reform'** that changes the religion itself.

Ijtihad today — the names only		
Definition	Conditions	Contemporary fields
juhd	Arabic	transplants (1988)
mujtahid	Quran	IVF
detailed evidences	Sunnah	cloning (1997)
An-Nisa 83	Ijma	takaful (1985)
two rewards	usul	banking
Mu'adh	Maqasid	sukuk
Banu Qurayzah	times	crypto
Umar	uprightness	AI
	no Ijtihad against a text	online contracts
		polar times
		moon
		climate
		parliament
		CII and FSC
		unity

Figure 7 · At a glance — ijtihad today — the names only. The detail is in the sections above.

(4) Conclusion

★ QURAN

﴿وَمَا كَانَ الْمُؤْمِنُونَ لِيَنفِرُوا كَافَّةً فَلَوْلَا نَفَرَ مِن كُلِّ فِرْقَةٍ مِّنْهُمْ طَائِفَةٌ لِّيَتَفَقَّهُوا فِي الدِّينِ وَلِيُنذِرُوا قَوْمَهُمْ إِذَا رَجَعُوا إِلَيْهِمْ لَعَلَّهُمْ يَحْذَرُونَ﴾

“And it is not for the believers to go forth [to battle] all at once. For there should separate from every division of them a group [remaining] to obtain understanding in the religion and warn their people when they return to them that they might be cautious.” (At-Tawbah, Quran)

→ Why should not a party from every group go forth **to gain understanding in religion**, and warn their people when they return?

Ijtihad is the Shari'ah's own tool for **meeting the future**. Disciplined by its conditions and guided by the Maqasid, it keeps the law **faithful to the texts and alive to the times**. For today's Ummah, and for Pakistan's constitutional promise of Islamic law, it is **a duty, not an option**.

Why this answer scores

- A **precise definition** with its basis, Companions' practice, conditions and scope — in the shorter first limb.
- **Contemporary importance** is shown **field by field**, with **named Fiqh Academy rulings and years** — 'in the light of Islamic Fiqh'.
- Pakistan's institutions and Iqbal add **relevance**.

Answer 4 · 'The Islamic Financial and Economic System Is the Solution of Human Financial Problems' (CSS 2020)

THE QUESTION · CSS 2020 · Q8 · 20 marks

"Islamic Financial and Economic system is the solution of the human financial problems". Discuss.

A thesis answer: the problems of today's system; the Islamic alternative, problem by problem; evidence of practice; conditions and a balanced verdict.

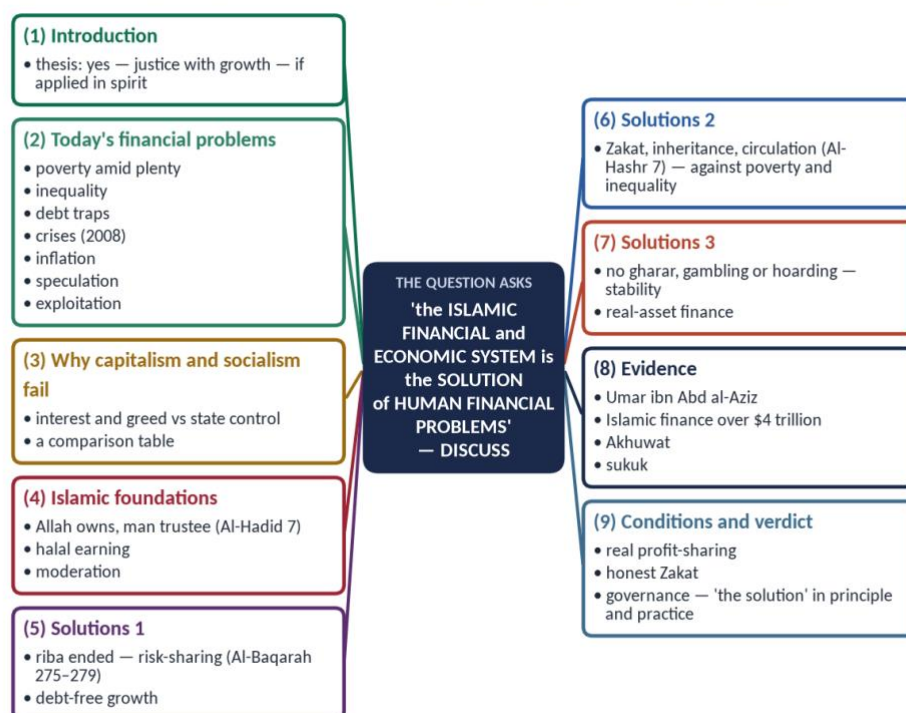


Figure 8 · The answer map: every branch is one numbered heading of the model answer below.

Decoding the question

- A **quotation to 'discuss'** — take a **position**, prove it, answer the objections, and give a **balanced verdict**.
- **'Financial and economic'** — cover both **finance** (banking, debt, riba) and **economics** (poverty, distribution, growth).
- Show the **problems first**, then show that Islam **solves them**.

The model answer

(1) Introduction

The world has more wealth than ever, yet millions are poor and in debt, and every decade brings a financial crisis. The Islamic economic system claims to be the answer because it joins **markets with morality** and **growth with justice**. The thesis of this answer: **yes, it is the solution — when it is applied in its spirit and not only in its labels**.

(2) The financial problems of humanity today

- **Poverty amid plenty** — hundreds of millions in extreme poverty beside unprecedented wealth.
- **Inequality** — the richest tenth own about three-quarters of global wealth (*World Inequality Report 2022*).
- **Debt traps** — households, companies and whole nations crushed by interest. For many developing countries, including Pakistan, **interest payments take a large share of the budget**.
- **Financial crises** — the **2008** crash began with speculation on debt ('sub-prime' mortgages sold and resold).
- **Inflation and speculation** — money chasing paper assets rather than real production.
- **Exploitation** of workers and consumers; **consumerism** and waste.

(3) Why the existing systems have failed

Point	Capitalism	Socialism	Islam
Ownership	Private, almost unlimited	State	Allah's; man is trustee — private, public and state, each within limits
Finance	Interest-based debt	State credit	Risk-sharing; interest forbidden
Distribution	Market alone	State alone	Market + Zakat + inheritance + welfare
Motive	Profit	Plan	Profit with morality and the Hereafter
Result	Growth with inequality and crises	Equality with stagnation	Growth with justice

(4) The Islamic solution, problem by problem

(i) The foundation — trusteeship

✦ QURAN

﴿ءَامِنُوا بِاللّٰهِ وَرَسُولِهِ - وَأَنْفِقُوا مِمَّا جَعَلَكُمْ مُّسْتَخْلَفِينَ فِيهِ فَالَّذِينَ ءَامَنُوا مِنْكُمْ وَأَنْفَقُوا لَهُمْ أَجْرٌ كَبِيرٌ﴾

“Believe in Allah and His Messenger and spend out of that in which He has made you successors. For those who have believed among you and spent, there will be a great reward.” (Al-Hadid, Quran)

→ Believe in Allah and His Messenger and **spend of that in which He has made you trustees**.

Wealth is a **trust**. The owner may enjoy and grow it, but must pay its dues and may not use it to harm others.

(ii) Debt traps and crises → the prohibition of riba

✦ QURAN

﴿... وَأَحَلَّ اللَّهُ الْبَيْعَ وَحَرَّمَ الرِّبَا ...﴾

“Allah has permitted trade and has forbidden riba.” (Al-Baqarah, Quran)

✦ QURAN

﴿... وَذَرُوا مَا بَقِيَ مِنَ الرِّبَا إِن كُنْتُمْ مُؤْمِنِينَ ۚ فَإِن لَّمْ تَفْعَلُوا فَأْذَنُوا بِحَرْبٍ مِّنَ اللَّهِ وَرَسُولِهِ ۖ وَإِن تُبْتِغُوا فَلََكُمْ رَأْسُ أََمْوَالِكُمْ لَا تَظْلِمُونَ وَلَا تُظْلَمُونَ﴾

“... and give up what remains of riba, if you are believers. If you do not, then be informed of a war from Allah and His Messenger. But if you repent, you may have your principal — do no wrong and suffer no wrong.” (Al-Baqarah, Quran)

→ ... give up what remains of riba, if you are believers. If you do not, then be informed of a war from Allah and His Messenger. But if you repent, you may have your principal — **do no wrong and suffer no wrong**.

Interest makes money grow **without risk or work**, and loads the whole risk on the borrower. Islam replaces it with **mudarabah and musharakah**, where profit and loss are shared, so finance is tied to **real, productive activity**. A system without interest cannot build the towers of debt-on-debt that collapsed in **2008**. After that crisis even the Vatican's newspaper (2009) suggested that banks study the ethics of Islamic finance.

(iii) Poverty → Zakat and social security

✦ QURAN

﴿إِنَّمَا الصَّدَقَتُ لِلْفُقَرَاءِ وَالْمَسْكِينِ وَالْعَمِلِينَ عَلَيْهَا وَالْمُؤَلَّفَةِ قُلُوبُهُمْ وَفِي الرِّقَابِ وَالْغَرَمِينَ وَفِي سَبِيلِ اللَّهِ وَابْنِ السَّبِيلِ ۖ فَرِيضَةً مِّنَ اللَّهِ وَاللَّهُ عَلِيمٌ حَكِيمٌ﴾

“Zakah expenditures are only for the poor and for the needy and for those employed to collect [zakah] and for bringing hearts together [for Islam] and for freeing captives [or slaves] and for those in debt and for the cause of Allah and for the [stranded] traveler - an obligation [imposed] by Allah. And Allah is Knowing and Wise.” (At-Tawbah, Quran)

→ Zakat is only for the poor and the needy ...

- 2.5% of savings every year;
- 5–10% of crops;
- Sadaqah, waqf and the state's duty to meet **basic needs**, as Umar's Diwan did even for new-born children.

(iv) Inequality → circulation of wealth

✦ QURAN

﴿... كَيْ لَا يَكُونَ دُولَةً بَيْنَ الْأَغْنِيَاءِ مِنْكُمْ ...﴾

“... so that it does not circulate only among the rich among you.” (Al-Hashr, Quran)

→ So that it does **not circulate only among the rich** among you.

- **Inheritance** divides every estate among many heirs.
- **Bequests** are limited to one-third.
- **Hoarding** is forbidden: 'None hoards except a sinner' (Muslim).
- **Essential resources** are shared: 'Muslims are partners in water, pasture and fire' (Abu Dawud).

(v) Speculation and instability → no gharar, no gambling

★ QURAN

﴿يَا أَيُّهَا الَّذِينَ ءَامَنُوا إِنَّمَا الْخَمْرُ وَالْمَيْسِرُ وَالْأَنْصَابُ وَالْأَزْلَمُ رِجْسٌ مِّنْ عَمَلِ الشَّيْطَانِ فَاجْتَنِبُوهُ لَعَلَّكُمْ تُفْلِحُونَ﴾

"O you who have believed, indeed, intoxicants, gambling, [sacrificing on] stone alters [to other than Allah], and divining arrows are but defilement from the work of Satan, so avoid it that you may be successful." (Al-Ma'idah, Quran)

→ Intoxicants, **gambling** ... are filth from the work of Shaytan, so avoid them.

The Prophet ﷺ **forbade gharar** — the sale of what is uncertain or not owned (Muslim). This removes **speculative derivatives** and short-selling of what one does not have.

(vi) Exploitation → fair trade and fair wages

- 'Woe to those who give less in measure' (Al-Mutaffifin 1–3).
- 'Give the worker his wage before his sweat dries' (Ibn Majah).
- 'The truthful, trustworthy merchant is with the prophets' (Al-Tirmidhi).

(vii) Consumerism and waste → moderation

★ QURAN

﴿وَالَّذِينَ إِذَا أَنْفَقُوا لَمْ يُسْرِفُوا وَلَمْ يَقْتُرُوا وَكَانَ بَيْنَ ذَلِكَ قَوَامًا﴾

"And [they are] those who, when they spend, do so not excessively or sparingly but are ever, between that, [justly] moderate." (Al-Furqan, Quran)

→ Those who, when they spend, are **neither extravagant nor miserly**.

(5) Evidence that it works

- **History:** under **Umar ibn Abd al-Aziz**, reports say Zakat collectors in some provinces **found no one poor enough to take it**.
- **Today:**
 - global Islamic finance has grown to **over 4 trillion dollars** (industry estimates, 2023);
 - **Malaysia** runs a strong Islamic financial sector and professional Zakat institutions;
 - in **Pakistan**, Islamic banking is about a **quarter of banking assets**;
 - the government issues **sukuk** (since 2008);
 - **Akhuwat** (2001) has given interest-free loans to millions.

(6) Objections and the conditions for success

- **Objection:** 'Islamic banks only relabel interest.' **Reply:** where banks rely on cost-plus sales benchmarked to interest rates, the criticism has force. The answer is **more real risk-sharing** (musharakah, mudarabah), not the abandonment of the system.
- **Objection:** 'It cannot work in a global interest-based economy.' **Reply:** Pakistan's Constitution now requires the elimination of **riba before 1 January 2028**. A phased plan — sukuk for government debt, Islamic monetary tools, training — makes it possible.
- **Conditions:**
 - honest, efficient **Zakat** administration;
 - **good governance** and accountability;

- **education** in Islamic finance;
- **taqwa** — without honesty, no system works.

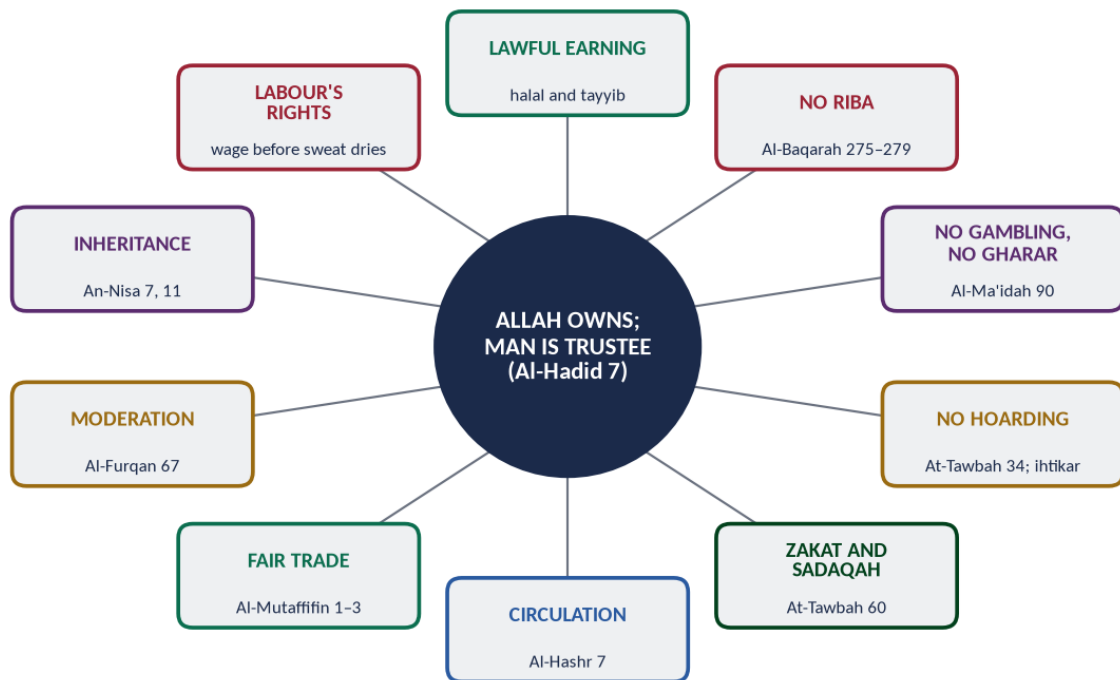


Figure 9 · The principles of the Islamic economic system.

Is Islam the solution? — the names only		
Problems	Islamic answers	Evidence and conditions
poverty	trusteeship (Al-Hadid 7)	Umar ibn Abd al-Aziz
inequality	no riba (Al-Baqarah 275-279)	\$4 trillion
debt	Zakat (At-Tawbah 60)	Malaysia
crises (2008)	circulation (Al-Hashr 7)	Pakistan's quarter
inflation	inheritance	sukuk 2008
speculation	no hoarding	Akhuwat
exploitation	shared resources	real risk-sharing
consumerism	no gharar or gambling	honest Zakat
	fair wages	governance
	moderation	taqwa

Figure 10 · At a glance — is Islam the solution? — the names only. The detail is in the sections above.

(7) Conclusion

✦ QURAN

﴿يَمْحَقُ اللَّهُ الرِّبَا وَيُزِيلُ الصَّدَقَاتِ وَاللَّهُ لَا يُحِبُّ كُلَّ كَفَّارٍ أَثِيمٍ﴾

"Allah destroys interest and gives increase for charities. And Allah does not like every sinning disbeliever."

(Al-Baqarah, Quran)

→ 'Allah destroys riba and gives increase for charities.'

The Islamic financial and economic system is **the solution** to humanity's financial problems in principle. It ends debt slavery through risk-sharing, poverty through Zakat, inequality through circulation and inheritance, and instability through the ban on gharar and gambling. Whether it becomes the solution **in practice** depends on Muslims applying its **spirit** — justice and trust — and not only its forms.

Why this answer scores

- A **clear thesis** with a **balanced verdict**, as 'discuss' requires.
- **Problems are matched one-to-one** with Islamic solutions and verses.
- **Evidence** (history, data) and **objections answered** show depth.

Answer 5 · The Principles of Islamic Economics and Their Solutions to Contemporary Challenges (CSS 2022)

THE QUESTION · CSS 2022 · Q3 · 20 marks

Write down the main principles of Islamic Economics. How do these principles provide solutions to contemporary challenges?

Twelve numbered principles, each with a verse or hadith; then a challenge-by-challenge table linking each principle to a solution, with Pakistan.

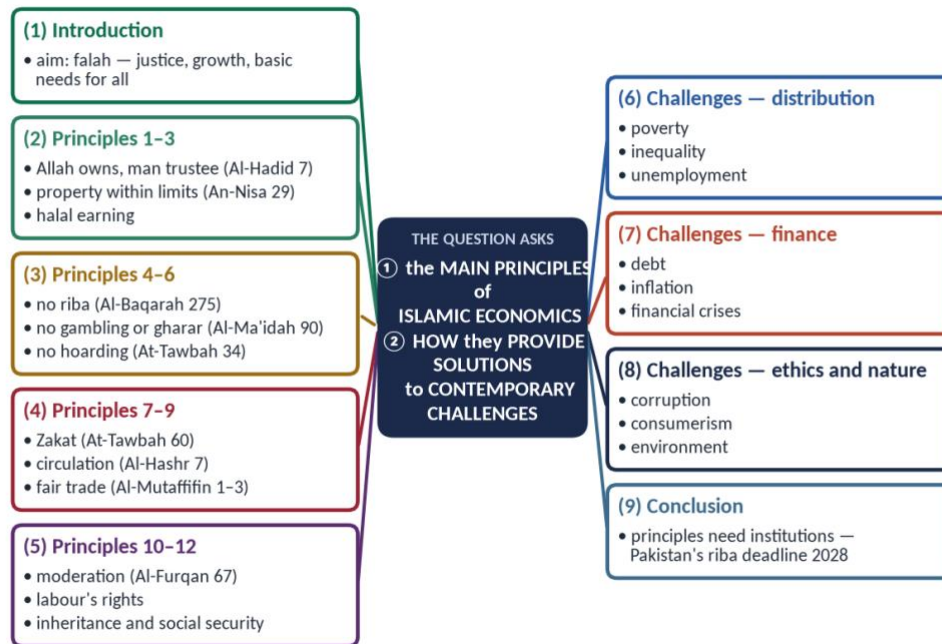


Figure 11 · The answer map: every branch is one numbered heading of the model answer below.

Decoding the question

- 'Write down the main principles' — a **numbered list**, each principle stated clearly with its evidence.
- 'How do these principles provide solutions to contemporary challenges?' — link each **challenge** to the **principle** that solves it. A table is ideal.

The model answer

(1) Introduction

Islamic economics is the organisation of economic life within the Shari'ah to achieve **falah** — success in this world and the next — through **justice, growth and the meeting of everyone's basic needs**. Its principles come from the Quran and Sunnah and were practised in the Islamic state from Madinah onwards.

(2) The main principles of Islamic economics

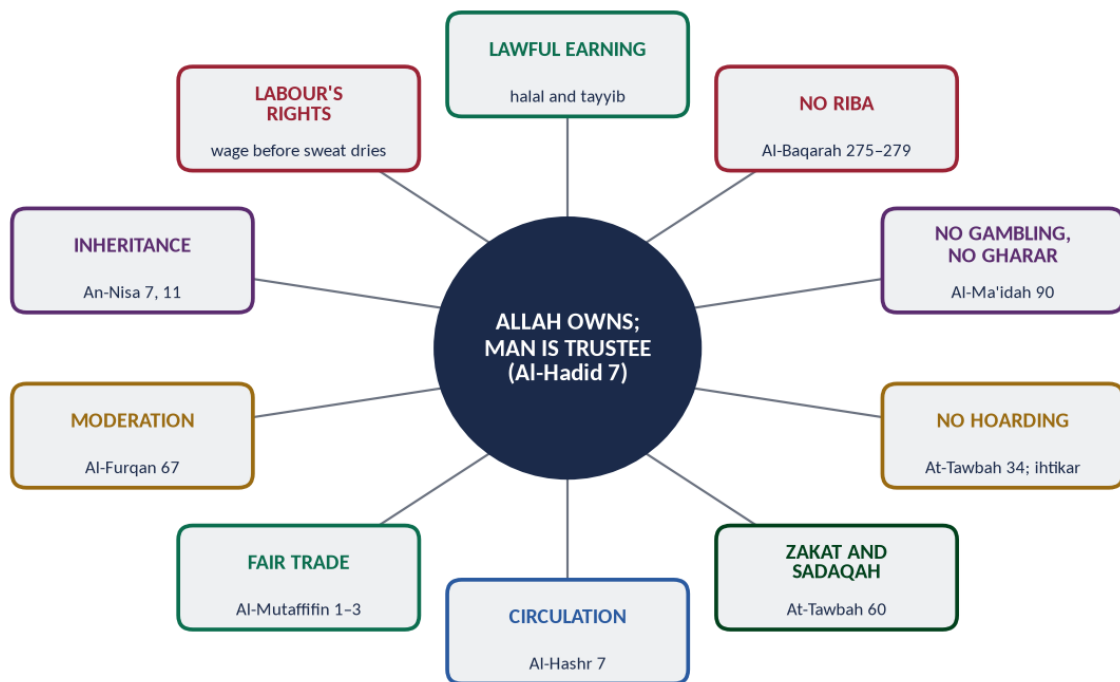


Figure 12 · The principles of the Islamic economic system.

(1) Allah is the owner; man is a trustee

✦ QURAN

﴿ءَامِنُوا بِاللّٰهِ وَرَسُوْلِهِ ۚ وَاَنْفِقُوْا مِمَّا جَعَلَكُمْ مُّسْتَخْلَفِيْنَ فِيْهِۦۤ فَالَّذِيْنَ ءَامَنُوْا مِنْكُمْ وَاَنْفَقُوْا لَهُمْ اَجْرٌ كَبِيْرٌ﴾

“Believe in Allah and His Messenger and spend out of that in which He has made you successors. For those who have believed among you and spent, there will be a great reward.” (Al-Hadid, Quran)

→ Spend of that in which He has made you **trustees (mustakhlafin)**.

(2) Private property is protected, within limits

✦ QURAN

﴿... لَا تَأْكُلُوْا اَمْوَالَكُمْ بَيْنَكُمْ بِالْبَاطِلِ اِلَّا اَنْ تَكُوْنَ تِجْرَةً عَنْ تَرَاضٍ مِّنْكُمْ ...﴾

“Do not consume one another's wealth unjustly, but only in lawful trade by mutual consent.” (An-Nisa, Quran)

→ Do not consume one another's wealth unjustly, **but only by trade with mutual consent.**

(3) Earning must be lawful and good

✦ QURAN

﴿يَا أَيُّهَا النَّاسُ كُلُوا مِمَّا فِي الْأَرْضِ حَلَالًا طَيِّبًا وَلَا تَتَّبِعُوا خُطُوَاتِ الشَّيْطَانِ إِنَّهُ لَكُمْ عَدُوٌّ مُبِينٌ﴾

"O mankind, eat from whatever is on earth [that is] lawful and good and do not follow the footsteps of Satan. Indeed, he is to you a clear enemy." (Al-Baqarah, Quran)

→ 'Eat of what is lawful and good on the earth.'

'No one has ever eaten better food than what he eats from the work of his own hands' (Al-Bukhari).

(4) Riba is forbidden

✦ QURAN

﴿... وَأَحَلَّ اللَّهُ الْبَيْعَ وَحَرَّمَ الرِّبَا ...﴾

"Allah has permitted trade and has forbidden riba." (Al-Baqarah, Quran)

'The Messenger of Allah ﷺ cursed the one who consumes riba, the one who pays it, the one who writes it and its witnesses' (Muslim).

(5) Gambling and excessive uncertainty are forbidden

Al-Ma'idah 90 forbids **maysir**. The Prophet ﷺ **forbade the sale of gharar** (Muslim).

(6) Hoarding is forbidden

✦ QURAN

﴿... وَالَّذِينَ يَكْنِزُونَ الذَّهَبَ وَالْفِضَّةَ وَلَا يَنْفِقُونَهَا فِي سَبِيلِ اللَّهِ فَبَشِّرْهُمْ بِعَذَابٍ أَلِيمٍ﴾

"And those who hoard gold and silver and do not spend it in the way of Allah — give them tidings of a painful punishment." (At-Tawbah, Quran)

→ Those who **hoard gold and silver** and do not spend it in the way of Allah — give them news of a painful punishment.

'None hoards (goods to raise prices) except a sinner' (Muslim).

(7) Zakat is compulsory

✦ QURAN

﴿إِنَّمَا الصَّدَقَتُ لِلْفُقَرَاءِ وَالْمَسْكِينِ وَالْعَمِلِينَ عَلَيْهَا وَالْمُؤَلَّفَةِ قُلُوبُهُمْ وَفِي الرِّقَابِ وَالْغَرَمِينَ وَفِي سَبِيلِ اللَّهِ وَأَبْنِ السَّبِيلِ فَرِيضَةً مِّنَ اللَّهِ وَاللَّهُ عَلِيمٌ حَكِيمٌ﴾

"Zakah expenditures are only for the poor and for the needy and for those employed to collect [zakah] and for bringing hearts together [for Islam] and for freeing captives [or slaves] and for those in debt and for the cause of Allah and for the [stranded] traveler - an obligation [imposed] by Allah. And Allah is Knowing and Wise." (At-Tawbah, Quran)

→ Zakat is only for the poor, the needy ... debtors, in the way of Allah and the traveller.

(8) Wealth must circulate

✦ QURAN

﴿... كَيْ لَا يَكُونَ دُولَةً بَيْنَ الْأَغْنِيَاءِ مِنْكُمْ...﴾

"... so that it does not circulate only among the rich among you." (Al-Hashr, Quran)

→ So that it does **not circulate only among the rich** among you.

(9) Trade must be fair

✦ QURAN

﴿وَيْلٌ لِّلْمُطَفِّفِينَ ۖ إِذَا كَتَالُوا عَلَى النَّاسِ يَسْتَوْفُونَ ۖ وَإِذَا كَالُوهُمْ أَوْ وَزَنُوهُمْ يُخْسِرُونَ﴾

"Woe to those who give less [than due]. Who, when they take a measure from people, take in full. But if they give by measure or by weight to them, they cause loss." (Al-Mutaffifin, Quran)

→ **Woe to those who give less**, who take full measure from people but give less when they measure for them.

(10) Moderation in spending

✦ QURAN

﴿وَالَّذِينَ إِذَا أَنْفَقُوا لَمْ يُسْرِفُوا وَلَمْ يَقْتُرُوا وَكَانَ بَيْنَ ذَلِكَ قَوَامًا﴾

"And [they are] those who, when they spend, do so not excessively or sparingly but are ever, between that, [justly] moderate." (Al-Furqan, Quran)

→ Those who, when they spend, are **neither extravagant nor miserly**.

(11) The rights of labour

'Give the worker his wage before his sweat dries' (Ibn Majah); 'Your servants are your brothers ... do not burden them beyond their capacity' (Al-Bukhari).

(12) Inheritance and social security

- An-Nisa 7 and 11 divide every estate among many heirs.
- The **Bayt al-Mal** guarantees basic needs, as Umar's Diwan did for all, Muslim and non-Muslim.

(3) How these principles solve contemporary challenges

Challenge	Principle	How it solves it
Poverty	Zakat (7); social security (12)	A yearly transfer from rich to poor; a guaranteed floor of basic needs
Inequality	Circulation (8); inheritance (12); no hoarding (6)	Wealth divided at every death; idle wealth taxed by Zakat; no monopolies
Debt crisis	No riba (4)	Risk-sharing (musharakah, mudarabah) and sukuk in place of interest-bearing loans
Financial crises	No gharar or gambling (5)	Finance tied to real assets; no speculative derivatives or debt-on-debt
Inflation	No hoarding (6); fair trade (9)	Goods kept in the market; honest prices

Challenge	Principle	How it solves it
Unemployment	Halal earning (3); no riba (4)	Partnership finance for small enterprise; the dignity of work
Exploitation of workers	Labour's rights (11)	Fair wages paid on time; humane conditions
Corruption and fraud	Fair trade (9); halal earning (3)	Cheating and bribery forbidden; 'whoever cheats is not of me' (Muslim)
Consumerism and waste	Moderation (10)	'The wasteful are brothers of the devils' (Al-Isra 27)
Environmental damage	Trusteeship (1)	Man as khalifah, not owner; 'do not spread corruption on earth' (Al-A'raf 56)

(4) Applying the principles — instruments and institutions

- **Islamic banks** using mudarabah, musharakah, murabahah and ijarah.
- **Sukuk** for government financing (Pakistan since 2008).
- **Takaful** in place of commercial insurance.
- **Qard hasan** — Akhuwat's interest-free loans (Pakistan, 2001).
- **Waqf** — endowments for health and education.
- **State Zakat** — Pakistan's Zakat and Ushr Ordinance (1980), which needs reform for trust and targeting.

(5) Pakistan

Pakistan faces heavy **debt and interest payments**, **inflation**, a **narrow tax base** and **youth unemployment**. The **Federal Shariat Court (2022)** and the **26th Amendment (2024)** require riba to end **before 1 January 2028**. A phased shift to sukuk, Islamic monetary tools and partnership finance, with honest Zakat, would apply these principles to Pakistan's own challenges.

Principles and solutions — the names only		
Principles	Challenges solved	Instruments
trusteeship	poverty	Islamic banks
property within limits	inequality	sukuk
halal earning	debt	takaful
no riba	crises	qard hasan (Akhuwat)
no gambling or gharar	inflation	waqf
no hoarding	unemployment	Zakat Ordinance 1980
Zakat	exploitation	riba deadline 2028
circulation	corruption	
fair trade	consumerism	
moderation	environment	
labour's rights		
inheritance and social security		

Figure 13 · At a glance — principles and solutions — the names only. The detail is in the sections above.

(6) Conclusion

✦ QURAN

﴿يَمْحَقُ اللَّهُ الرِّبَا وَيُزِيهِ الصَّدَقَاتِ وَاللَّهُ لَا يُحِبُّ كُلَّ كَفَّارٍ أَثِيمٍ﴾

"Allah destroys interest and gives increase for charities. And Allah does not like every sinning disbeliever."

(Al-Baqarah, Quran)

→ 'Allah destroys riba and gives increase for charities.'

The principles of Islamic economics — trusteeship, lawful earning, the ban on riba, gambling, gharar and hoarding, Zakat, circulation, fair trade, moderation and the rights of labour — answer the central challenges of today: poverty, inequality, debt, instability and exploitation. They become solutions when they are built into **institutions** and practised with **honesty**.

Why this answer scores

- **Twelve numbered principles**, each with a verse or hadith, exactly as 'write down the main principles' asks.
- A **three-column table** links each **challenge** to its **principle** and **solution**.
- Instruments and **Pakistan's 2028 deadline** show application.

Answer 6 · The Concept, Importance and Principles of Ijtihad (CSS 2022)

THE QUESTION · CSS 2022 · Q4 · 20 marks

Elaborate the concept and importance of Ijtihad and explain its principles.

Concept (meaning, basis, conditions, kinds); importance in brief; then ten principles of Ijtihad, each explained with a text or legal maxim.

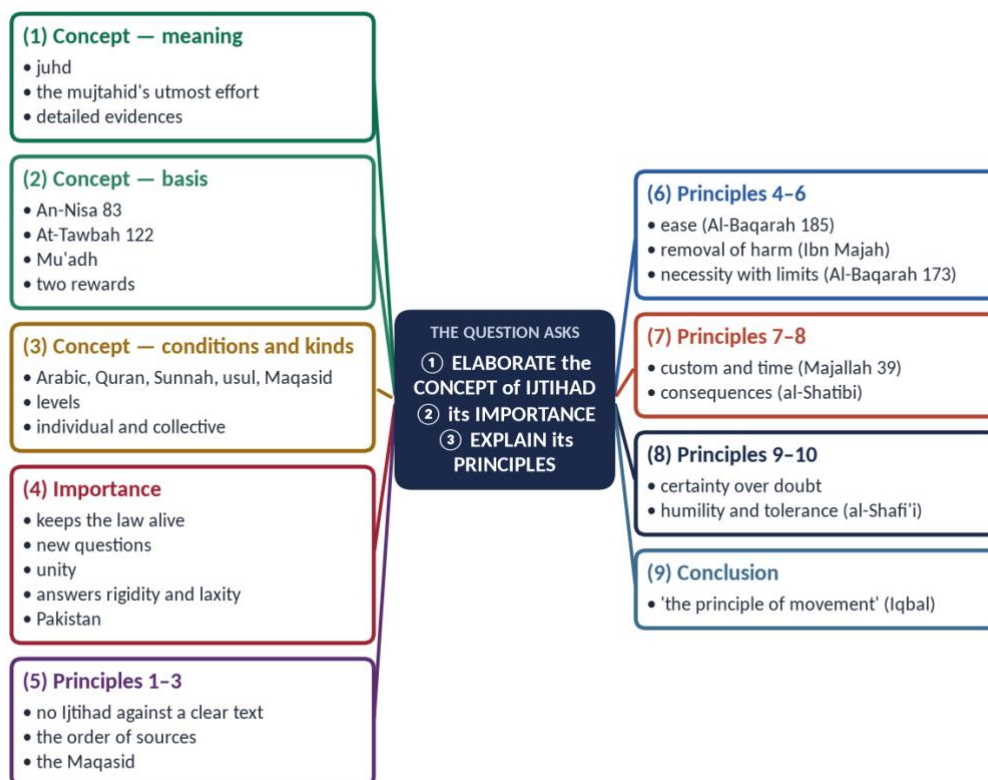


Figure 14 · The answer map: every branch is one numbered heading of the model answer below.

Decoding the question

- 'Elaborate the concept' — meaning, basis, conditions and kinds, in detail.
- 'Importance' — why it is needed, briefer here than in Answer 3.
- 'Explain its principles' — the **rules that govern Ijtihad**, each explained with evidence. This limb carries the most weight and the shape is new.

The model answer

(1) The concept of Ijtihad

(i) Meaning

Ijtihad (اجتهاد), from **juhd** (effort), is **the utmost effort of a qualified jurist to derive a practical legal ruling from its detailed evidences**. Iqbal called it '**the principle of movement in the structure of Islam**' (*Reconstruction*, Lecture VI).

(ii) Basis

★ QURAN

﴿... وَلَوْ رَدُّوهُ إِلَى الرَّسُولِ وَإِلَى أُولِي الْأَمْرِ مِنْهُمْ لَعَلِمَهُ الَّذِينَ يَسْتَنْبِطُونَهُ مِنْهُمْ...﴾

"If they had referred it to the Messenger and to those in authority among them, those who can draw conclusions from it would have known it." (An-Nisa, Quran)

→ ... those who can draw conclusions from it would have known it.

★ QURAN

﴿وَمَا كَانَ الْمُؤْمِنُونَ لِيَنْفِرُوا كَافَّةً فَلَوْلَا نَفَرَ مِنْ كُلِّ فِرْقَةٍ مِّنْهُمْ طَائِفَةٌ لِّيَتَفَقَّهُوا فِي الدِّينِ وَلِيُنذِرُوا قَوْمَهُمْ إِذَا رَجَعُوا إِلَيْهِمْ لَعَلَّهُمْ يَحْذَرُونَ﴾

"And it is not for the believers to go forth [to battle] all at once. For there should separate from every division of them a group [remaining] to obtain understanding in the religion and warn their people when they return to them that they might be cautious." (At-Tawbah, Quran)

→ ... a party from every group should go forth to gain understanding in religion.

★ HADITH

إِذَا حَكَمَ الْحَاكِمُ فَاجْتَهَدَ ثُمَّ أَصَابَ فَلَهُ أَجْرَانِ، وَإِذَا حَكَمَ فَاجْتَهَدَ ثُمَّ أَخْطَأَ فَلَهُ أَجْرٌ

"When a judge strives and is right, he has two rewards; if he strives and errs, he has one reward." (Al-Bukhari and Muslim)

The Prophet ﷺ approved **Mu'adh's** method — Book, Sunnah, then 'my own judgement' (Abu Dawud).

(iii) Conditions of the mujtahid

- Arabic;
- the Quran (legal verses, abrogation);
- the Sunnah (legal hadith and their authenticity);
- Ijma;
- usul al-fiqh and Qiyas;
- the **Maqasid**, which al-Shatibi made the first condition;
- knowledge of people and times;
- justice and piety.

(iv) Kinds

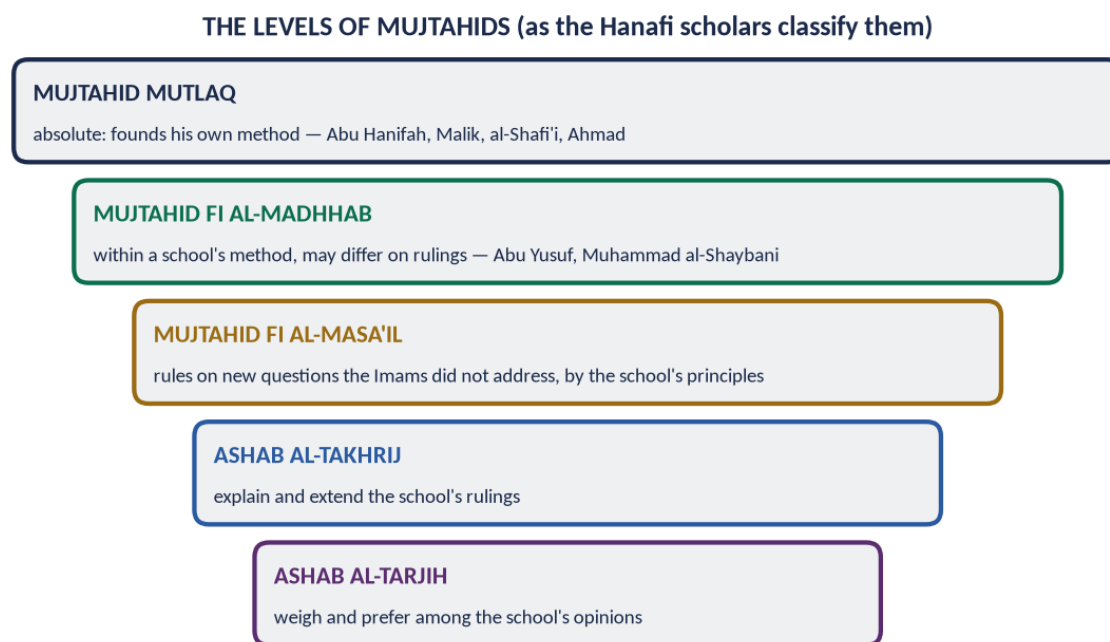


Figure 15 · The levels of mujtahids.

- **By level:** mujtahid mutlaq (the four Imams) down to the scholars who weigh opinions within a school.
- **By number:** individual and **collective** (the Fiqh Academy, the CII).
- **By method:** interpretation of texts (bayani), analogy (qiyasi), public interest (istislahi).

(2) The importance of Ijtihad

- **It keeps the Shari'ah alive** for every age and place.
- **It answers new questions:** transplants (Fiqh Academy, 1988), takaful (1985), sukuk, AI, polar prayer times.
- **It shows the law's rationality** — rulings have causes and purposes.
- **It answers two extremes** — rigid refusal of all change, and uncontrolled change.
- **It unites the Ummah** through collective councils of all schools.
- **It serves Pakistan's constitutional promise** — the CII and FSC, and the elimination of riba.

(3) The principles of Ijtihad**Principle 1 — No Ijtihad against a clear text**

The maxim: لَا اجْتِهَادَ مَعَ النَّصِّ ('no Ijtihad where there is a text').

✦ QURAN

﴿وَمَا كَانَ لِمُؤْمِنٍ وَلَا مُؤْمِنَةٍ إِذَا قَضَى اللَّهُ وَرَسُولُهُ أَمْرًا أَنْ يَكُونَ لَهُمُ الْخِيَرَةُ مِنْ أَمْرِهِمْ وَمَنْ يَعْصِ اللَّهَ وَرَسُولَهُ فَقَدْ ضَلَّ ضَلَالًا مُبِينًا﴾

"It is not for a believing man or a believing woman, when Allah and His Messenger have decided a matter, that they should [thereafter] have any choice about their affair. And whoever disobeys Allah and His Messenger has certainly strayed into clear error." (Al-Ahzab, Quran)

→ It is not for a believing man or woman, **when Allah and His Messenger have decided a matter, to have any choice** in it.

Ijtihad works in texts that are **probable in meaning** (zanni) or where there is **no text** — never against a **certain** ruling (the shares of inheritance, the prohibition of riba).

Principle 2 — Follow the order of sources

Quran → Sunnah → Ijma → Qiyas → secondary sources (istihsan, maslahah, 'urf). This is the order of **Mu'adh's hadith** and of An-Nisa 59.

Principle 3 — Serve the Maqasid al-Shari'ah

Every ruling must protect **faith, life, intellect, lineage and wealth** (al-Ghazali). A result that destroys any of them cannot be right. **Example:** organ donation was allowed because it saves **life**, with conditions that protect the donor.

Principle 4 — Ease and removal of hardship

✦ QURAN

﴿...يُرِيدُ اللَّهُ بِكُمْ الْيُسْرَ وَلَا يُرِيدُ بِكُمْ الْعُسْرَ...﴾

"Allah intends for you ease and does not intend for you hardship." (Al-Baqarah, Quran)

→ Allah **intends ease for you**, and does not intend hardship.

The maxim: **الْمَشَقَّةُ تَجْلِبُ التَّيْسِيرَ** ('hardship brings ease'). **Example:** combining prayers for travellers; the concessions for the sick.

Principle 5 — Harm must be removed

✦ HADITH

لَا ضَرَرَ وَلَا ضِرَارَ

"There is to be no harm and no returning of harm." (Ibn Majah)

The maxim: **الضَّرَرُ يُزَالُ** ('harm is removed'). **Example:** laws against adulterated food and pollution.

Principle 6 — Necessity, but within limits

✦ QURAN

﴿... فَمَنْ أَضْطُرَّ غَيْرَ بَاغٍ وَلَا عَادٍ فَلَا إِثْمَ عَلَيْهِ...﴾

"But whoever is forced by necessity, neither desiring it nor transgressing, there is no sin upon him." (Al-Baqarah, Quran)

→ **Necessity** lifts the prohibition — but only without desire or excess.

The maxims: الضَّرُورَاتُ تُبَيِّحُ الْمَحْظُورَاتِ ('necessity makes the forbidden permissible') — but '**necessity is measured by its extent**'. **Example:** a forbidden medicine only where no lawful one exists.

Principle 7 — Custom and changing times

'Custom is authoritative' (العَادَةُ مُحْكَمَةٌ); 'the change of rulings with the change of times cannot be denied' (Majallah, Article 39). **Example:** Umar ended the share of 'those whose hearts are reconciled' once its cause had gone; maintenance (nafaqah) is set by local custom.

Principle 8 — Consider the consequences (ma'alat al-af'al)

Al-Shatibi taught that the jurist must look at **where an act leads**. The Prophet ﷺ did not rebuild the Ka'bah on Ibrahim's foundations, fearing the reaction of people new to Islam (Al-Bukhari). **Blocking the means** (sadd al-dhara'i') follows from this principle.

Principle 9 — Certainty is not removed by doubt

الْيَقِينُ لَا يَزُولُ بِالشَّكِّ. A settled state (purity, innocence, ownership) stays until **proved** otherwise. **Example:** a person is innocent until proved guilty.

Principle 10 — Humility, and tolerance of difference

Ijtihad yields **probable** answers. Imam al-Shafi'i said: 'My view is correct with the possibility of error; another's view is wrong with the possibility of being correct.' Reasoned differences are respected. At Banu Qurayzah the Prophet ﷺ blamed neither group.

(4) Principles in action — two examples

Question	Principles applied
Takaful (1985)	No riba or gharar (1, 2); protect wealth (3); cooperation (Al-Ma'idah 2) → cooperative insurance allowed, commercial insurance not
Organ donation (1988)	Save life (3); remove harm (5); necessity with limits (6) → allowed with consent, no sale, no harm to the donor

Ijtihad: concept, importance, principles — the names only		
Concept	Importance	Ten principles
juhd	alive	no Ijtihad against a text (Al-Ahzab 36)
mujtahid	new questions	order of sources
An-Nisa 83	rational	Maqasid
At-Tawbah 122	against extremes	ease
two rewards	unity	no harm
Mu'adh	Pakistan	necessity with limits
conditions		custom and time
levels		consequences
collective		certainty over doubt
		humility (al-Shafi'i)

Figure 16 · At a glance — ijtihad: concept, importance, principles — the names only. The detail is in the sections above.

(5) Conclusion

Ijtihad is not freedom to change the religion; it is **disciplined reasoning within the religion**. Its ten principles — faithful to the text, ordered by the sources, guided by the Maqasid, easing hardship, removing harm, respecting custom, weighing consequences and practised with humility — make it, in Iqbal's words, '**the principle of movement**' that keeps Islam's permanent law alive in changing times.

Why this answer scores

- **Concept** fully elaborated: meaning, basis, conditions, kinds.
- **Ten principles**, each with a **verse, hadith or legal maxim in Arabic** and an **example** — the heart of the question.
- Two **worked examples** show the principles in use.

Answer 7 · Ijma and Its Kinds; Can a Parliament's Legislation Be a Valid Consensus? (CSS 2023)

THE QUESTION · CSS 2023 · Q5 · 20 marks

Define Ijma (consensus) and explain its different kinds. Can legislation by a parliament of an Islamic state be regarded as a valid consensus?

Definition and kinds compactly; then half the answer on the parliament debate — for, against, a reasoned verdict with conditions, and Pakistan.

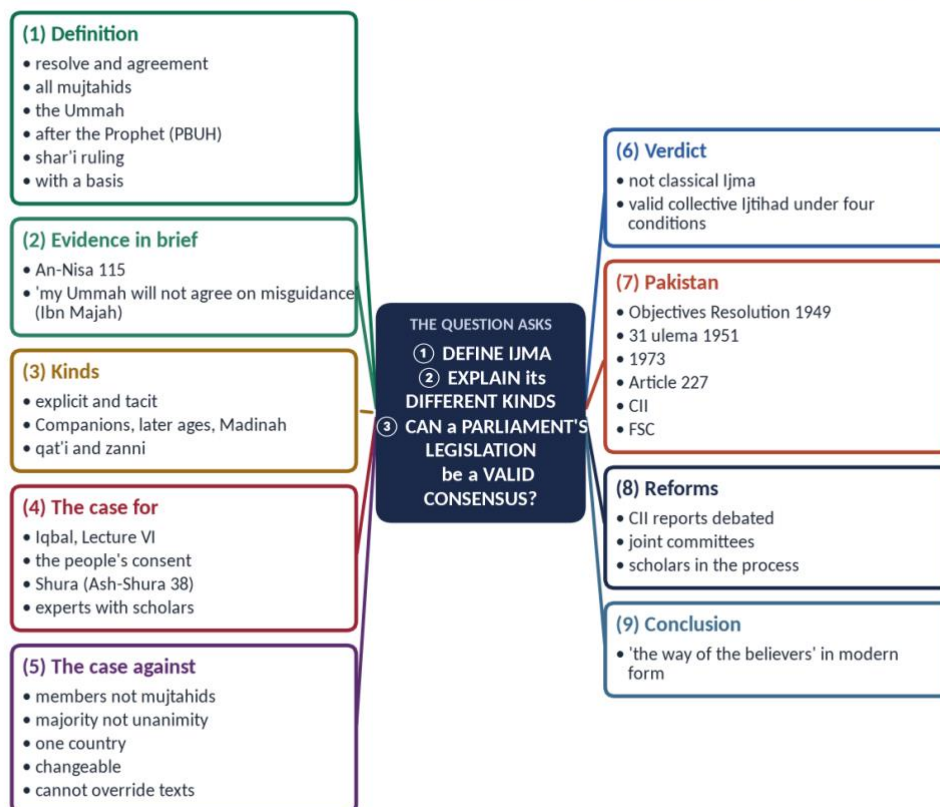


Figure 17 · The answer map: every branch is one numbered heading of the model answer below.

Decoding the question

- 'Define Ijma ... explain its different kinds' — the same first limb as 2017, but answer it **compactly**.
- 'Can legislation by a parliament ... be regarded as a valid consensus?' — a **debate question**. Give both sides, then a **reasoned verdict**. This limb decides the marks.

The model answer

(1) Definition of Ijma

Ijma' (إجماع) literally means **firm resolve** (Yunus 71) and **agreement**. Technically it is **the agreement of all the mujtahids of the Ummah of Muhammad ﷺ, in any age after his death, on a legal ruling**. Its conditions are:

- the agreeing people are **qualified jurists**;

- all of them agree;
- they are **Muslims**;
- it comes **after the Prophet's ﷺ death**;
- it rests on a **basis (sanad)** in the texts.

✦ QURAN

﴿وَمَنْ يُشَاقِقِ الرَّسُولَ مِنْ بَعْدِ مَا تَبَيَّنَ لَهُ الْهُدَىٰ وَيَتَّبِعْ غَيْرَ سَبِيلِ الْمُؤْمِنِينَ نُوَلِّهِ مَا تَوَلَّىٰ وَنُصْلِهِ ۖ جَهَنَّمَ وَسَاءَتْ مَصِيرًا﴾

"And whoever opposes the Messenger after guidance has become clear to him and follows other than the way of the believers - We will give him what he has taken and drive him into Hell, and evil it is as a destination."

(An-Nisa, Quran)

→ Whoever opposes the Messenger ... **and follows other than the way of the believers**, We will give him what he has taken.

✦ HADITH

إِنَّ أُمَّتِي لَا تَجْتَمِعُ عَلَى ضَلَالَةٍ

"My Ummah will not agree upon misguidance." **(Ibn Majah)**

(2) The different kinds of Ijma

Kind	Explanation and example
Explicit (sarih)	Every mujtahid states his view or acts on it, and all agree. Certain. Example: the Caliphate of Abu Bakr (RA)
Tacit (sukuti)	Some state a view; the rest stay silent after knowing it. Accepted by the Hanafis; probable
Of the Companions	Accepted by all schools. Example: the compilation of the Quran
Of a later age	Mujtahids of any generation — accepted by the majority
Of the people of Madinah	Their practice was authoritative for Imam Malik; not for others
Qat'i / Zanni	Certain when explicit and mass-transmitted; probable when tacit or reported by few

(3) Can legislation by a parliament be a valid consensus?

(i) The case for — Iqbal and the modern need

✦ SCHOLARLY VIEW

Allama Muhammad Iqbal · The Reconstruction of Religious Thought in Islam, Lecture VI

"The transfer of the power of Ijtihad from individual representatives of schools to a Muslim legislative assembly which, in view of the growth of opposing sects, is the only possible form Ijma can take in modern times, will secure contributions to legal discussion from laymen who happen to possess a keen insight into affairs."

- **Consent of the Ummah.** An elected assembly represents the whole people. Ijma is the 'way of the believers' (An-Nisa 115), and today that way is expressed through representation.

- **Shura.** 'Their affairs are by consultation among themselves' (Ash-Shura 38); a parliament is the modern institution of Shura.
- **Experts with scholars.** Modern laws on banking, medicine and technology need economists, doctors and engineers alongside jurists. An assembly can bring them together.
- **Classical Ijma is no longer practical.** Mujtahids are spread across dozens of states, and full agreement cannot be verified. Iqbal therefore saw the assembly as 'the only possible form'.
- **Iqbal's safeguard.** He suggested that **scholars of Islamic law** should form part of the assembly, or guide it, so that it would not err in interpretation.

(ii) The case against — why it is not classical Ijma

- **Members are not mujtahids.** Most legislators are not qualified jurists. Classical Ijma is the agreement of the qualified.
- **Majority is not unanimity.** A law passed by a simple majority, against a large minority, is not consensus.
- **One nation is not the Ummah.** Ijma is the agreement of the Ummah's jurists; one country's parliament speaks only for that country.
- **Laws are changeable.** A parliament can repeal its own laws, while classical Ijma is settled and binding on later generations.
- **A vote cannot override revelation.** No majority can make lawful what the Quran and Sunnah forbid (Al-Ahzab 36). A parliament without Islamic limits could legislate against the texts.

(iii) The reasoned verdict

Parliamentary legislation is **not Ijma in the classical, binding sense**. But it **can be a valid form of collective Ijtihad** — the modern, national expression of the principle behind Ijma — **if four conditions are met**:

- **(a) Within the Quran and Sunnah** — the assembly's power is limited by revelation. Pakistan's **Article 227** says no law may be repugnant to the injunctions of Islam.
- **(b) With qualified scholars** — laws are prepared with the advice of jurists. Pakistan has the **Council of Islamic Ideology** (Articles 228–231).
- **(c) Open to judicial review** — a court can strike down laws repugnant to Islam. Pakistan has the **Federal Shariat Court** (Article 203).
- **(d) By broad agreement** — major laws should be passed by wide consensus across parties and schools, not a narrow majority.

Under these conditions the assembly's legislation earns the **authority of collective Ijtihad**. It binds the citizens of that state and deserves obedience (An-Nisa 59), while remaining open to correction — unlike the settled Ijma of the Companions.

(4) Pakistan's experience

- **The Objectives Resolution (1949)**, passed by the Constituent Assembly, accepted the sovereignty of Allah and the limits He prescribes. It is now **Article 2A**.
- **The 22 points of 31 ulema (1951)** — scholars of **all schools** agreed on the basic principles of an Islamic state. It was a rare **inter-school consensus**, and it influenced constitution-making.
- **The 1973 Constitution** was adopted by broad agreement of the elected assembly, with its Islamic provisions (Articles 2, 2A, 31, 227–231).
- **The riba judgements** — the FSC (1991, 2022) and Parliament's **26th Amendment (2024)**, fixing the deadline of 1 January 2028 — show court and parliament working towards Islamic law together.

(5) What would make parliament's role stronger

- **Debate the CII's reports** within a fixed time. Many have never been discussed.

- **Joint committees** of legislators, scholars of all schools and experts on major laws.
- **Research capacity** for the CII and training of legislators in Islamic law.
- **Wide consultation** of scholars and public before major laws, in the spirit of Abd al-Rahman ibn Awf's three-day poll of the people.

Ijma and parliament — the names only		
Ijma	Parliament — for and against	Verdict and Pakistan
resolve and agreement	Iqbal's assembly	collective Ijtihad if — within 227
all mujtahids	consent	with the CII
after the Prophet (PBUH)	Shura	FSC review
sanad	experts	broad agreement — 1949
An-Nisa 115	practicality — not mujtahids	31 ulema 1951
Ibn Majah — explicit	majority	1973
tacit (Hanafi)	one country	riba 2024
Companions	changeable	
later	texts supreme	
Madinah (Malik)		
qat'i		
zanni		

Figure 18 · At a glance — ijma and parliament — the names only. The detail is in the sections above.

(6) Conclusion

✦ QURAN

﴿وَالَّذِينَ اسْتَجَابُوا لِرَبِّهِمْ وَأَقَامُوا الصَّلَاةَ وَأَمْرُهُمْ شُورَى بَيْنَهُمْ وَمِمَّا رَزَقْنَاهُمْ يُنفِقُونَ﴾

“And those who have responded to their lord and established prayer and whose affair is [determined by] consultation among themselves, and from what We have provided them, they spend.” (Ash-Shura, Quran)

→ Their affairs are **by consultation among themselves**.

Ijma is the consensus of the Ummah's qualified jurists, in explicit and tacit forms, protected by the Prophet's ﷺ promise that his Ummah will not agree on misguidance. A modern parliament cannot claim that classical authority. But **bound by the Quran and Sunnah, advised by scholars, reviewed by courts and acting by broad agreement**, it can carry the spirit of Ijma forward — as Iqbal hoped — as the Ummah's collective Ijtihad in modern times.

Why this answer scores

- The first limb is **compact but complete** (a table of kinds), leaving room for the debate.
- The parliament question gets **both sides**, a **conditional verdict** and **Pakistani examples**.
- Iqbal is quoted **exactly**; the Constitution (2A, 227–231, 203) grounds the verdict.

Answer 8 · The Disadvantages of Concentration of Wealth and Islam's Measures to Prevent It (CSS 2025)

THE QUESTION · CSS 2025 · Q5 · 20 marks

What are the disadvantages of concentration of wealth? What economic measures has Islam introduced to prevent this concentration of wealth?

The problem in data; seven disadvantages; then twelve Islamic measures, each with evidence; Pakistan.

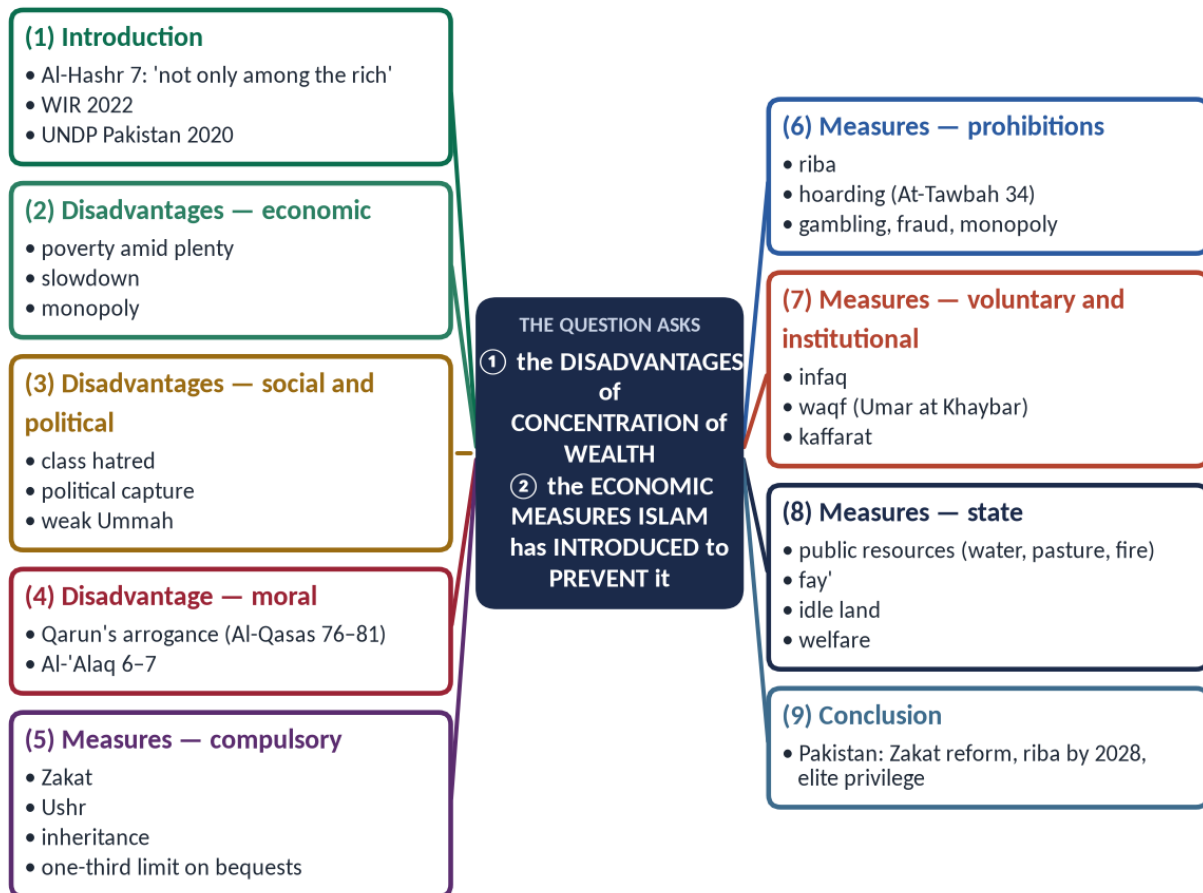


Figure 19 · The answer map: every branch is one numbered heading of the model answer below.

Decoding the question

- 'Disadvantages' — the **harms** of wealth in few hands: economic, social, political and moral.
- 'Economic measures Islam has introduced' — **concrete institutions and laws**, each with a verse or hadith, not general moral advice.

The model answer

(1) Introduction

✦ QURAN

﴿... كَيْ لَا يَكُونَ دُولَةً بَيْنَ الْأَغْنِيَاءِ مِنْكُمْ...﴾

"... so that it does not circulate only among the rich among you." (Al-Hashr, Quran)

→ So that it does **not circulate only among the rich** among you.

The Quran names concentration of wealth as a problem to be **prevented**. The problem is severe today:

- The *World Inequality Report 2022* found that the **richest 10% hold about three-quarters of global wealth**, while the **poorer half holds about 2%**.
- In Pakistan, the UNDP's *National Human Development Report (2020)* estimated the privileges of **elite groups** at about **17.4 billion dollars a year**, roughly **6% of GDP**.

(2) The disadvantages of concentration of wealth

(i) Poverty amid plenty

When a few own most of the wealth, the many lack food, health care and education. Wealth that does not circulate does not reach those in need.

(ii) Economic slowdown

The poor spend what they get, while the rich save much of theirs. When wealth gathers at the top, **demand falls**, businesses close and jobs disappear. Hoarded wealth does not work for society.

(iii) Monopoly and exploitation

Concentrated wealth controls **markets, prices and wages**. Small traders are pushed out, and consumers and workers are exploited.

(iv) Class hatred and social unrest

Extreme inequality breeds **envy, crime and conflict**. Many revolutions in history followed such gaps.

(v) Political capture

Wealth buys influence over **elections, laws and taxes**. Policies begin to serve the few, and democracy turns into **plutocracy**.

(vi) Moral decay — the Qarun syndrome

✦ QURAN

﴿إِنَّ قَارُونَ كَانَ مِنْ قَوْمِ مُوسَى فَبَغَى عَلَيْهِمْ...﴾

"Indeed, Qarun was from the people of Musa, **but he tyrannised over them**." (Al-Qasas, Quran)

Qarun said, 'I was given it only because of knowledge I have' (Al-Qasas 78). His arrogance ended when **the earth swallowed him and his house** (Al-Qasas 81).

✦ QURAN

﴿كَذَٰلِكَ إِنَّ الْإِنْسَانَ لِرَبِّهِ لَآكْفَرٌ ۚ إِنَّهُ رَأَاهُ آسْتَغْنَىٰ﴾

“No! [But] indeed, man transgresses. Because he sees himself self-sufficient.” (Al-Alaq, Quran)

→ No! Indeed, man transgresses **because he sees himself self-sufficient**.

(vii) Weakness of the Ummah

A society split between the super-rich and the destitute cannot be **united or strong**.

(3) The economic measures Islam introduced to prevent concentration

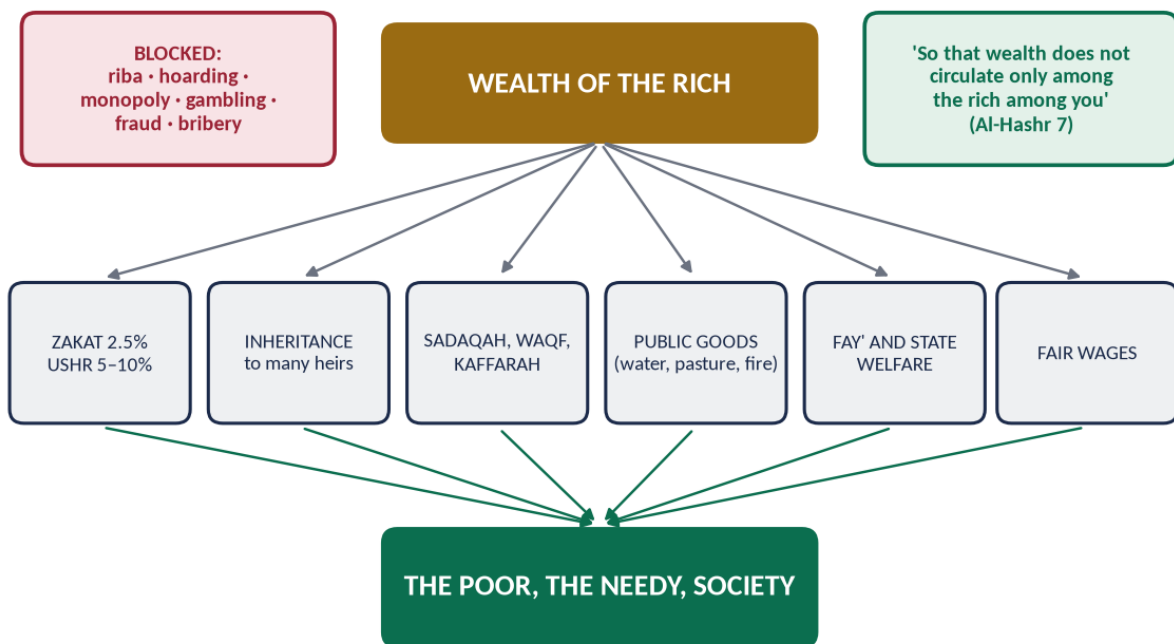


Figure 20 · How Islam moves wealth from the few to the many.

(i) Zakat — a yearly compulsory transfer

✦ HADITH

تُؤْخَذُ مِنْ أَغْنِيَائِهِمْ فَرَّدَ عَلَىٰ فُقَرَائِهِمْ

“It is taken from their rich and returned to their poor.” (Al-Bukhari and Muslim)

→ The Prophet's ﷺ instruction to Mu'adh.

- 2.5% of savings above the nisab every year;
- Ushr of 5–10% on crops;
- 20% on buried treasure.

Idle money shrinks each year, so owners are pushed to **invest** it.

(ii) The law of inheritance

At every death, wealth is **divided among many heirs**, men and women (An-Nisa 7, 11, 12, 176).

- **Bequests are limited to one-third** — 'a third, and a third is a lot' (Al-Bukhari and Muslim).

- A bequest cannot favour an heir.
- There is **no primogeniture**: great estates cannot pass whole to one son.

(iii) The prohibition of riba

✦ QURAN

﴿... وَأَحَلَّ اللَّهُ الْبَيْعَ وَحَرَّمَ الرِّبَا...﴾

"Allah has permitted trade and has forbidden riba." (Al-Baqarah, Quran)

Interest moves wealth from the borrower who works to the lender who waits — from the poor to the rich. Islam replaces it with **profit-and-loss sharing**.

(iv) The prohibition of hoarding

✦ QURAN

﴿... وَالَّذِينَ يَكْنِزُونَ الذَّهَبَ وَالْفِضَّةَ وَلَا يَنْفِقُونَهَا فِي سَبِيلِ اللَّهِ فَبَشِّرْهُمْ بِعَذَابٍ أَلِيمٍ﴾

"And those who hoard gold and silver and do not spend it in the way of Allah — give them tidings of a painful punishment." (At-Tawbah, Quran)

→ Those who **hoard gold and silver** and do not spend it in the way of Allah — give them news of a painful punishment.

'None hoards (goods to raise prices) except a sinner' (Muslim).

(v) Voluntary spending (infaq)

✦ QURAN

﴿... وَيَسْأَلُونَكَ مَاذَا يُنْفِقُونَ قُلِ الْعَفْوَ...﴾

"They ask you what they should spend. Say: 'The surplus.'" (Al-Baqarah, Quran)

✦ QURAN

﴿وَفِي أَمْوَالِهِمْ حَقٌّ لِّلسَّائِلِ وَالْمَحْرُومِ﴾

"And from their properties was [given] the right of the [needy] petitioner and the deprived." (Adh-Dhariyat, Quran)

→ In their wealth was a **right for the one who asks and the deprived**.

(vi) Waqf — permanent public wealth

When **Umar (RA)** received land at Khaybar, the Prophet ﷺ said: **'If you wish, keep the asset itself and give its produce in charity'** (Al-Bukhari and Muslim). Waqfs later funded schools, hospitals, wells and inns across the Muslim world.

(vii) Public ownership of essential resources

★ HADITH

المُسْلِمُونَ شُرَكَاءُ فِي ثَلَاثٍ: فِي الْكَلَاءِ، وَالْمَاءِ، وَالنَّارِ

“Muslims are partners in three things: pasture, water and fire.” (Abu Dawud)

→ Essential resources cannot be monopolised.

Umar kept the lands of Iraq as **state property** for all generations.

(viii) Distribution of state revenue (fay')

Al-Hashr 7 was revealed about the fay' of **Banu Nadir**, which the Prophet ﷺ gave to the **poor Muhajirun**, so that wealth would not stay with the rich.

(ix) Idle land returns to use

Umar (RA) took back uncultivated land from **Bilal ibn al-Harith**. The rule reported from him: whoever fences land and leaves it idle for **three years** loses his right (Abu Yusuf, *Kitab al-Kharaj*).

(x) Obligatory charities and expiations

Zakat al-Fitr, **kaffarat** (feeding the poor for broken oaths and missed fasts) and **fidyah** keep wealth flowing to the poor.

(xi) The ban on unjust gains

Gambling (Al-Ma'idah 90), **gharar**, **fraud** ('whoever cheats is not of me', Muslim), **bribery** (Al-Baqarah 188) and **short measure** (Al-Mutaffifin 1–3) are forbidden — the channels through which wealth is unjustly gathered.

(xii) Fair wages

'Give the worker his wage before his sweat dries' (Ibn Majah). Profit may not be made by **robbing labour**.

(4) The lesson for Pakistan

- **Reform Zakat** under the 1980 Ordinance into a trusted, digital, well-targeted system.
- **End riba before 1 January 2028**, as the 26th Amendment requires.
- **Tax the rich fairly** and remove elite privileges.
- **Revive waqf** and support interest-free finance such as **Akhuwat**.
- **Enforce** the law against **hoarding and cartels**.

Concentration of wealth — the names only		
Disadvantages	Islamic measures	Pakistan
poverty amid plenty	Zakat and Ushr	WIR 2022
slowdown	inheritance (one-third	UNDP 2020 (\$17.4 billion)
monopoly	no primogeniture)	Zakat reform
class hatred	no riba	riba by 2028
political capture	no hoarding	fair taxes
Qarun (Al-Qasas 76–81)	infaq (al-'afw	waqf
Al-'Alaq 6–7	a right)	Akhuwat
weak Ummah	waqf (Khaybar)	anti-hoarding
	water, pasture, fire	
	fay' (Banu Nadir)	
	idle land (three years)	
	kaffarat	
	no unjust gains	
	fair wages	

Figure 21 · At a glance — concentration of wealth — the names only. The detail is in the sections above.

(5) Conclusion

✦ QURAN

﴿ءَامِنُوا بِاللّٰهِ وَرَسُولِهِ ۖ وَأَنْفِقُوا مِمَّا جَعَلَكُمْ مُّسْتَخْلَفِينَ فِيهِ ۖ فَالَّذِينَ ءَامَنُوا مِنْكُمْ وَأَنْفَقُوا لَهُمْ أَجْرٌ كَبِيرٌ﴾

“Believe in Allah and His Messenger and spend out of that in which He has made you successors. For those who have believed among you and spent, there will be a great reward.” (Al-Hadid, Quran)

→ Spend of that in which He has made you **trustees**.

Concentration of wealth produces poverty, slowdown, monopoly, unrest, political capture and arrogance. Islam answers with a complete set of **economic institutions**:

- Zakat and inheritance **distribute** wealth;
- the bans on riba and hoarding **stop its unjust accumulation**;
- waqf and public ownership **share** it;
- the state **guarantees** basic needs.

All serve one Quranic aim: wealth must **not circulate only among the rich**.

Why this answer scores

- **Seven disadvantages** grouped by type, with **data** and the Quranic story of **Qarun**.
- **Twelve concrete measures**, each with a **verse or hadith** — 'economic measures', not general advice.
- **Pakistan** applies the answer.